

LEGAL TEAMS / CLIENTS / PROFESSIONAL JUDGMENT

Law English

Precise language for facts, authority,
and carefully bounded advice.

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Eight lessons. Eleven extended conversations.

INSIDE THE BOOK

192 vocabulary entries / 128 reusable phrases
220 extended-dialogue turns / 11 transfer exchanges
Word banks and explained answer keys

Upper-intermediate to advanced (B2-C1). For internationally trained lawyers, paralegals, legal assistants, and legal-team colleagues.

2026 edition

Eight scenarios. Eight skills.

Separate fact from conclusion, explain the authority, and preserve the client decision.

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Precision is more than formal vocabulary.

Legal English distinguishes what someone alleges, what a record shows, what an authority says, and what a lawyer concludes. These fictional cases practice those distinctions using primarily US workplace terminology; legal systems and professional roles vary.

Attribute the statement

Identify whether a point comes from a client, a witness, a document, or the reviewing lawyer. A clear attribution avoids silently converting a report into an established fact.

"The client reports late delivery; we have not reviewed the signed agreement."

Name the authority and its limits

A relevant decision is not necessarily controlling. Jurisdiction, court level, facts, procedural posture, and later treatment can affect its use.

"This decision supports the argument by analogy; its binding effect has not been established."

Keep the condition attached

A short summary should preserve material qualifications. An estimate, an option, a proposed term, and an authorized instruction are different things.

"The proposed wording remains subject to client approval and counsel review."

Do not promise a result

Explain known information, options, uncertainty, and next steps within the assigned role. A reassuring tone must not become a guarantee or imply authority the speaker lacks.

"I can confirm the review is scheduled, not that the court will accept the position."

PROFESSIONAL BOUNDARIES

Fictional language practice, not legal advice or qualification to practice law. Terminology, duties, privilege, deadlines, and procedure depend on jurisdiction and facts. Actual decisions require authorized counsel and current governing sources. Never use real confidential client material in practice.

A late-delivery email is not the whole contract

A Read the situation

Distinguish an allegation from a legal conclusion and identify missing evidence.

A case note says the supplier breached the contract. The team has an email stating that delivery occurred on 18 May, but has not reviewed the signed agreement or amendments. The client says the promised date was 15 May. Ava, a paralegal, prepared the chronology; Daniel, supervising counsel, reviews the analysis. No legal conclusion about breach or remedy has been approved.

PEOPLE / Ava: Paralegal | Daniel: Supervising counsel

QUALIFY THE CONCLUSION WITHOUT WEAKENING THE FACTUAL REPORT

Legal colleagues may challenge a sentence sharply because one verb changes its status. "Reports," "shows," "suggests," and "establishes" convey different levels and sources of support. Attribute each point and identify what further review is needed.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What does the available email report?

- A** Delivery on 18 May
- B** A signed 15 May contractual deadline
- C** An agreed damages award
- D** A court finding of breach

2. Where does the 15 May date currently come from?

- A** A reviewed signed agreement
- B** A court judgment
- C** An approved amendment
- D** The client's account

3. Which conclusion remains unapproved?

- A** Whether Daniel supervises the analysis
- B** Whether the supplier breached an applicable obligation
- C** Whether an email exists
- D** Whether Ava prepared a chronology

Answers and explanations: [page 85](#).

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

fact

A circumstance treated as established on the relevant evidence.

IN USE distinguish facts from conclusions

allegation

An assertion that has not necessarily been established.

IN USE attribute an allegation

issue

A question requiring analysis or determination.

IN USE frame the legal issue

rule

A governing proposition whose applicability must be assessed.

IN USE identify the applicable rule

application

Analysis connecting a rule to the relevant facts.

IN USE explain the application

conclusion

A reasoned determination drawn from the analysis.

IN USE qualify the conclusion

evidence

Information offered to support a factual proposition.

IN USE assess the supporting evidence

inference

A conclusion drawn from other information.

IN USE identify an evidential inference

assumption

A proposition used provisionally without establishing it.

IN USE state the working assumption

chronology

An ordered account of events over time.

IN USE prepare a sourced chronology

source

The origin of a statement or piece of information.

IN USE identify the source

corroboration

Additional support for an account or proposition.

IN USE seek independent corroboration

Precision check

The email and client account are sources to assess, not interchangeable proof of the signed terms. Delivery on 18 May does not alone establish breach of a 15 May contractual obligation, particularly when the agreement and amendments remain unreviewed.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

agreement

An arrangement whose terms and legal effect require context.

IN USE review the signed agreement

obligation

A requirement imposed by a relevant legal or contractual source.

IN USE identify the disputed obligation

breach

Failure to comply with an applicable legal or contractual duty.

IN USE assess an alleged breach

remedy

A form of relief potentially available for a legal wrong.

IN USE evaluate available remedies

damages

Monetary relief sought or awarded for a legal wrong; its basis and purpose vary.

IN USE distinguish damages from a claimed loss

causation

The legally relevant connection between conduct and consequence.

IN USE analyze causation

materiality

The significance of a fact or term in its legal context.

IN USE assess materiality

qualification

A condition or limit attached to a statement.

IN USE preserve a material qualification

reservation

A stated concern or limit on a position.

IN USE express a reservation

exposure

Potential adverse legal or financial consequence.

IN USE assess potential exposure

preliminary

Initial and subject to further review.

IN USE label the analysis preliminary

factual record

The assembled information relevant to the matter.

IN USE complete the factual record

Precision check

A claimed loss is not automatically recoverable damages. An available remedy depends on governing law and facts. These cases practice how to preserve that uncertainty, not how to resolve a real dispute.

Phrases you can actually use

C Notice the language / 1 of 2

ATTRIBUTE A REPORT

"The client reports that 15 May was the promised date."

SEPARATE A CONCLUSION

"We have not yet established the applicable contractual deadline."

QUALIFY THE NOTE

"The potential breach analysis remains preliminary."

AVOID A GUARANTEE

"We cannot infer an available remedy from the date alone."

STATE THE RECORD

"The email records delivery on 18 May."

IDENTIFY MISSING MATERIAL

"We need the signed agreement and any relevant amendments."

FRAME THE ISSUE

"The question is which delivery obligation governed this shipment."

CLOSE WITH A TASK

"I will assemble the documents and identify each source in the chronology."

Reporting verbs

"The client reports" attributes a claim; "the agreement requires" claims the terms have been established.

May versus does

"May support" marks a possible inference rather than a completed legal determination.

Subject to

Keep "subject to review of the amendments" attached to the conclusion it limits.

Phrases you can actually use

C Notice the language / 2 of 2

DISTINGUISH EVIDENCE

"That supports the delivery date, not necessarily the promised date."

CHECK AN ASSUMPTION

"Are we assuming the email varied the signed terms?"

INVITE CORRECTION

"Which part of the chronology conflicts with the source record?"

SEPARATE LOSS AND RELIEF

"The claimed loss and recoverable damages are different questions."

PRESERVE ATTRIBUTION

"Please retain 'the client reports' in the shortened summary."

NAME AN INFERENCE

"That is an inference from the sequence, not an express statement in the document."

LIMIT CERTAINTY

"The record may support that position, subject to the remaining review."

CONFIRM REVIEW STATUS

"Counsel has not approved a final conclusion on breach or remedy."

Chronological order

Dates establish a sequence, not by themselves the legal effect of the events.

Not necessarily

This phrase rejects an automatic inference without claiming that the inference must be false.

Passive precision

"It is alleged" may hide the source; name who makes the allegation when appropriate and authorized.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which sentence accurately describes the available record?

- A** The signed agreement conclusively requires delivery by 15 May.
- B** A court has found the supplier liable.
- C** Damages are automatically the difference between the dates.
- D** The client reports a 15 May promise; the email records delivery on 18 May.

2. Which word best signals an initial analysis?

- A** executed
- B** final
- C** preliminary
- D** adjudicated

3. Which request targets the missing contractual basis?

- A** Please calculate a guaranteed recovery now.
- B** Please treat the client's date as a court finding.
- C** Please obtain the signed agreement and relevant amendments.
- D** Please remove all qualifications from the summary.

4. Which distinction matters before recommending a remedy?

- A** A chronology heading as proof of breach
- B** A reported promise as an automatically verified contractual duty
- C** A delivery interval as an automatically calculated award
- D** Claimed loss versus legally recoverable damages

Answers and explanations: [page 85](#).

A late-delivery email is not the whole contract

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

amendments / obligation / factual record / Causation / preliminary / conclusion / attribution / qualification / analysis / allegation

- 01 **Ava:** My chronology says the supplier breached by delivering three days late. I have the email stating delivery on 18 May and the client's account of a fifteenth-of-May promise.
- 02 **Daniel:** We need to qualify that ¹ _____. Have you reviewed the signed agreement and amendments, or only the email and client account?
- 03 **Ava:** Only those two sources so far. I can say who supplied each date, but I can't yet say which contractual deadline governed.
- 04 **Daniel:** Keep that ² _____ in the opening. The client's reported promise and the email's delivery statement are different sources, not verified matching contract terms.
- 05 **Ava:** Would client alleges breach work as a heading if I immediately explain that the governing terms haven't been reviewed?
- 06 **Daniel:** Yes, present the client's ³ _____ as their position. Then identify what we need to check rather than leaving the heading to do the analysis.
- 07 **Ava:** I'll request the signed agreement. Do we also need later changes that might have affected this particular shipment?
- 08 **Daniel:** Yes, the relevant ⁴ _____. A complete initial agreement may still be insufficient if the parties later changed the applicable delivery obligation.
- 09 **Ava:** Some chronology entries summarize telephone calls. I'll label those as the client's account instead of making them look like quotations from documents.
- 10 **Daniel:** Good. The ⁵ _____ should show the source and its limits. That lets us identify what is documented and what needs further support.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 10.

- 11 **Ava:** The client also reports a lost sale. I put the claimed amount under damages, but that heading could sound like we've assessed recovery.
- 12 **Daniel:** Use claimed loss for now. ⁶ _____, recoverability and amount still need review; a reported loss does not settle those questions.
- 13 **Ava:** I'll move it to a separate entry and retain the source. The short team update should carry the same limit as the detailed chronology.
- 14 **Daniel:** Exactly. Keep the ⁷ _____ beside the claim when shortening it. Don't let the brief version sound final while the longer version says the terms are missing.
- 15 **Ava:** A colleague wants to retain three days late because the dates are clear. Which question would test that wording without dismissing the chronology?
- 16 **Daniel:** Ask which reviewed term establishes the ⁸ _____. The numerical interval is clear, but the applicable duty and its legal effect still need a basis.
- 17 **Ava:** My new opening will distinguish the reported fifteenth-of-May promise from the email's eighteenth-of-May delivery statement, with breach and remedies still under review.
- 18 **Daniel:** That is appropriately ⁹ _____. Add who is requesting the missing documents so the note leads to a specific next step.
- 19 **Ava:** I'll request the signed agreement and relevant changes today, with the source references attached. Please review the revised note before any client assessment goes out.
- 20 **Daniel:** I will. Once the terms and evidence are assembled, we can complete the ¹⁰ _____ without making the chronology itself carry an unsupported legal conclusion.

ANSWERS / EXPLANATIONS: PAGE 86

1. conclusion | 2. attribution | 3. allegation | 4. amendments | 5. factual record | 6. Causation | 7. qualification | 8. obligation | 9. preliminary | 10. analysis

A termination email without the governing clause

F Say it

A client reports that a supplier ended service early. The team has the termination email but has not reviewed the governing termination clause or amendments. No conclusion on validity is approved.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

preliminary / summary / reports / clause

Paralegal: "The client ¹ _____ that service ended early."

Counsel: "Obtain the governing termination ² _____ and any amendments."

Paralegal: "Until that review, the validity assessment remains ³ _____."

Counsel: "Keep that qualification attached to the ⁴ _____ circulated internally."

ANSWERS / EXPLANATIONS: PAGE 86

1. reports | 2. clause | 3. preliminary | 4. summary

Rehearse with a fixed script

1. Check the dialogue. Attribute 15 May to the client and 18 May to the email; do not convert the interval into a breach finding.
2. Switch roles. Request the signed agreement and amendments, keeping claimed loss distinct from recoverable damages.
3. Complete the termination exchange. Retain the unreviewed clause and preliminary assessment in the circulated summary.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

An urgent inquiry before the conflicts review is complete

A Read the situation

Explain intake limits, request necessary identifiers, and avoid implying accepted representation.

A prospective client, Mira, has emailed a detailed dispute account and asks whether to send a demand today. The conflicts review is incomplete. Leo is an intake coordinator, not the reviewing lawyer. The firm's procedure requires the parties' names and related entities before the assigned lawyer can decide whether the firm may accept the matter. No acceptance or advice has been authorized. Mira mentions a possible deadline but supplies no document establishing it.

PEOPLE / Mira: Prospective client | Leo: Intake coordinator

BE HELPFUL WITHOUT IMPLYING A DECISION

A friendly intake response can be mistaken for agreement to act. Explain the current status, the information needed, and the limits of your role. Do not imply that unaccepted representation means information can be shared freely; duties concerning prospective clients require appropriate review.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What remains incomplete?

- A The conflicts review
- B A signed settlement
- C A court hearing already held
- D A confirmed demand strategy

2. What may Leo accurately describe?

- A The guaranteed outcome of a demand
- B The final legal deadline
- C A confirmed acceptance by the firm
- D The intake process and information needed for review

3. How should the mentioned deadline be treated?

- A As automatically extended by intake
- B As canceled because no document was attached
- C As a confirmed filing date calculated by Leo
- D As an unverified urgent point for the assigned reviewer

Answers and explanations: page 87.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

intake

The process of receiving and assessing an initial inquiry.

IN USE complete the intake record

prospective client

A person seeking legal representation or advice.

IN USE handle a prospective-client inquiry

engagement

An accepted professional assignment with defined scope.

IN USE confirm the engagement scope

engagement letter

A document recording terms of a professional assignment.

IN USE review the engagement letter

scope of representation

The matters and services covered by an engagement.

IN USE define the scope of representation

conflict check

Review for interests or duties that may affect acceptance.

IN USE complete a conflict check

conflict of interest

Competing interests or duties relevant to professional judgment.

IN USE assess a potential conflict

adverse party

A person or entity with an opposing interest in the matter.

IN USE identify the adverse party

related entity

An organization connected to a relevant party.

IN USE list related entities

affiliate

An entity connected through ownership or control in context.

IN USE identify corporate affiliates

confidentiality

Duties or expectations restricting use and disclosure of information.

IN USE protect confidential information

privilege

A legally recognized protection affecting compelled disclosure in defined circumstances.

IN USE assess a privilege question

Precision check

Receipt of an inquiry is not a reliable basis for assuming accepted representation or advice. Duties involving prospective-client information can arise independently of a signed engagement letter. Applicable rules and facts require counsel review.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

informed consent

Agreement following adequate information and explanation under applicable rules.

IN USE refer informed-consent questions to counsel

waiver

Relinquishment or loss of a right or protection, depending on context.

IN USE avoid assuming a waiver

screening

A controlled process limiting involvement or access where applicable.

IN USE follow an approved screening process

referral

Direction to another appropriate professional or service.

IN USE coordinate a permitted referral

retainer

A term used for an engagement or fee arrangement, depending on context.

IN USE clarify the retainer terms

fee arrangement

Terms governing charges for professional work.

IN USE explain the approved fee arrangement

matter number

An identifier assigned to a legal matter or inquiry.

IN USE reference the matter number

identity verification

Confirmation of relevant identifying information.

IN USE complete identity verification

authorization

Permission to perform a specified action.

IN USE confirm advice authorization

acceptance

Agreement to take on the specified professional work.

IN USE confirm acceptance of the matter

non-engagement

A decision or communication that specified work is not being accepted.

IN USE route a non-engagement communication for review

urgent inquiry

A request whose timing may require prompt attention.

IN USE escalate an urgent inquiry

Precision check

Confidentiality and privilege are related but distinct concepts. An intake coordinator should not promise that every message is privileged, decide a waiver question, or treat an incomplete conflict check as clearance.

Phrases you can actually use

C Notice the language / 1 of 2

ACKNOWLEDGE RECEIPT

"I have received your inquiry and noted the urgency."

LIMIT THE ROLE

"I can explain intake, but I am not authorized to advise on the demand."

AVOID IMPLIED ACCEPTANCE

"I cannot confirm that the firm has accepted the matter."

ROUTE THE CONCERN

"I will flag the possible deadline for the assigned lawyer's review."

STATE THE STAGE

"The conflicts review is still in progress."

REQUEST IDENTIFIERS

"Please provide the parties' names and relevant related entities through the approved channel."

PROTECT THE DEADLINE

"Do not assume the intake process changes any existing deadline."

CLOSE WITH A STATUS

"The next message will confirm the review status, not a guaranteed outcome."

Cannot confirm

This states the speaker's information or authority limit without making an unsupported legal conclusion about the relationship.

Still in progress

The phrase marks incomplete review, not a likely outcome.

Receipt versus agreement

"Received" should not be replaced by "accepted" when only a message has arrived.

Phrases you can actually use

C Notice the language / 2 of 2

SEPARATE QUESTIONS

"Acceptance, scope, and advice are separate decisions."

AVOID A PRIVILEGE PROMISE

"Questions about legal protection require the reviewing lawyer's assessment."

CONFIRM RECEIPT ONLY

"This acknowledgment confirms receipt, not authorization to send a demand."

PRESERVE AN UNKNOWN

"The deadline has been mentioned but not established from a reviewed document."

HANDLE SENSITIVE MATERIAL

"We will handle the information under the applicable intake procedure."

CHECK ENTITY NAMES

"Is that the contracting entity or a related trading name?"

CLARIFY SCOPE

"Which specific matter are you asking the firm to assess?"

REFER APPROPRIATELY

"I will ask the authorized reviewer how to communicate the next step."

Named roles

"The assigned lawyer will review" is more specific than "someone will get back to you."

Existing deadline

Preserve the distinction between a deadline's existence and the team's incomplete knowledge of it.

May arise

This wording avoids treating a general professional duty as an identical rule in every jurisdiction.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which acknowledgment avoids implying substantive advice?

- A** Your email guarantees that the firm represents you.
- B** No signed letter means the information has no protection.
- C** We received your inquiry; conflicts review and any acceptance decision remain pending.
- D** We received your inquiry, so send the demand today.

2. Which question supports the stated conflict process?

- A** What are the names of the opposing party and related entities?
- B** Can we treat the trading name as the only relevant entity?
- C** Can urgency replace the unfinished conflicts review?
- D** Can prior contact with the firm establish acceptance of this matter?

3. Which claim exceeds Leo's role?

- A** The proposed demand is legally safe to send today.
- B** The assigned reviewer has been notified.
- C** The conflict review is incomplete.
- D** The inquiry has been received.

4. What does confidentiality not automatically establish?

- A** That access should be controlled under the applicable process
- B** That counsel may need to review a disclosure question
- C** That every communication is protected by evidentiary privilege
- D** That information requires appropriate handling

Answers and explanations: page 87.

An urgent inquiry before the conflicts review is complete

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

privilege / scope / urgent inquiry / confidentiality / next step / related entities / receipt / inquiry / intake / acceptance

- 01 **Mira:** I sent the full dispute account this morning. The supplier is pressing me for a response, and I need to know whether I should send a demand today.
- 02 **Leo:** I have received your ¹ _____ and noted the urgency. I coordinate intake, but I am not the lawyer reviewing the proposed demand.
- 03 **Mira:** Does that mean the firm is already acting for me? I assumed opening the email would start the engagement immediately.
- 04 **Leo:** I cannot confirm ² _____. The assigned lawyer must review the matter, including the incomplete conflict check, before we can communicate the authorized position.
- 05 **Mira:** What information is missing for that check? I gave the supplier's trading name, but the contract uses a different company name and I am not sure which matters.
- 06 **Leo:** Please provide both through the approved intake route, along with relevant ³ _____. The reviewer needs to identify the actual parties rather than assume two names refer to the same organization.
- 07 **Mira:** I can send the contract page identifying them. Should I send every document now, or wait for confirmation of what the review needs?
- 08 **Leo:** Follow the requested ⁴ _____ steps. I will ask the assigned lawyer what additional material is needed and explain the approved channel for providing it.
- 09 **Mira:** I also mentioned a possible deadline at the end of the week. I do not have the notice in front of me, so I cannot confirm its wording.
- 10 **Leo:** I will flag that as an ⁵ _____. Do not assume our intake process changes any existing deadline. The document and timing need qualified review.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 19.

- 11 **Mira:** Thank you. I want to be sure that sending sensitive information before acceptance does not mean it can simply be shared with anyone who asks about the dispute.
- 12 **Leo:** We handle it under the applicable procedure. Questions about ⁶ _____ and the duties arising from your contact go to the reviewing lawyer, not to an assumption that no signed letter means no obligations.
- 13 **Mira:** Is every email I send automatically privileged, then? I was thinking of forwarding the whole exchange to a business partner so they can help me decide.
- 14 **Leo:** I cannot make that ⁷ _____ assessment or advise on onward disclosure. I will refer the question to the lawyer instead of promising protection that depends on the circumstances.
- 15 **Mira:** One more thing: the employment issue in the attachment is background. I'm asking you to handle the supplier dispute. Can you make that clear?
- 16 **Leo:** Yes. Clarifying the requested ⁸ _____ helps the reviewer understand what work you are seeking. It does not mean that either matter has already been accepted.
- 17 **Mira:** I will provide the names and possible deadline document through that route. Please confirm when the materials reach the reviewer.
- 18 **Leo:** I can confirm ⁹ _____ and review status. I cannot promise the firm's decision or recommend sending the demand before authorized advice is available.
- 19 **Mira:** Understood. I'll send the party names and the notice now. Please flag the timing to the lawyer; I need to know the next step urgently.
- 20 **Leo:** Thank you. I will record those distinctions and seek the authorized ¹⁰ _____. The update will address the intake status, the urgent timing question, and who is responsible for further communication.

ANSWERS / EXPLANATIONS: PAGE 88

1. inquiry | 2. acceptance | 3. related entities | 4. intake | 5. urgent inquiry | 6. confidentiality | 7. privilege | 8. scope | 9. receipt | 10. next step

A former client, a new dispute

F Say it

A former client emails a new supplier dispute. The prior engagement concerned a different matter. The new conflicts and scope reviews are incomplete, and an assistant has no authority to accept it.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

scope / pending / reviewer / inquiry

Assistant: "We received your new ¹ _____ about the supplier."

Client: "Does the earlier engagement establish the new ² _____?"

Assistant: "The new conflicts review and acceptance decision remain ³ _____."

Client: "Please route the question to the authorized ⁴ _____."

ANSWERS / EXPLANATIONS: PAGE 88

1. inquiry | 2. scope | 3. pending | 4. reviewer

Rehearse with a fixed script

1. Check the answers. Read receipt, conflicts review and acceptance as separate stages; keep Leo's role limited to intake.
2. Switch roles. Request the party names and deadline document through the approved route without promising privilege or changing any deadline.
3. Complete the former-client exchange. Keep the new matter's scope and acceptance decision pending despite the earlier engagement.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Two dates in the task list, neither verified as controlling

A Read the situation

Escalate a deadline discrepancy and distinguish a calendar entry from verified procedural authority.

A litigation task list shows 12 October from an internal planning email and 15 October from a document labeled proposed schedule. The team has not located a signed scheduling order or confirmed the applicable deadline rules. Elise coordinates the file; Karim is supervising litigation counsel. No extension has been confirmed. Counsel must verify the controlling deadline; the team cannot treat the later date as approved merely because it appears in a document.

PEOPLE / Elise: Litigation coordinator | Karim: Supervising litigation counsel

RAISE THE DISCREPANCY EARLY AND NEUTRALLY

A deadline conflict calls for precise escalation, not a guess based on the most convenient date. Identify both sources, mark their status, and ask the responsible lawyer to verify the controlling authority. A reminder in a calendar is not itself an extension or court order.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Where does 15 October currently appear?

- A A confirmed court extension
- B An approved final judgment
- C A document labeled proposed schedule
- D A located signed order

2. What has not been confirmed?

- A Whether an internal email exists
- B Whether counsel supervises the matter
- C The controlling deadline and any extension
- D Whether the task list has two dates

3. Who must verify the deadline?

- A An unrelated client contact
- B The later-dated document automatically
- C Karim, supervising counsel
- D The calendar software by itself

Answers and explanations: [page 89](#).

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

pleading

A formal statement of claims or defenses, such as a complaint or answer under applicable procedure.

IN USE review the pleading

complaint

A document commencing a civil claim in relevant systems.

IN USE identify the filed complaint

answer

A formal response to a complaint under applicable procedure.

IN USE prepare an answer for review

motion

A request for a court to make an order or decision.

IN USE file a motion when authorized

brief

A written presentation of legal argument in context.

IN USE review the supporting brief

hearing

A proceeding before a court or decision-maker.

IN USE confirm the hearing details

order

A direction or decision issued by the court.

IN USE locate the signed order

scheduling order

A court order setting procedural dates or requirements.

IN USE verify the scheduling order

docket

The court's record or list of proceedings and filings.

IN USE check the docket record

filing

Submission of a document through the applicable court process.

IN USE verify filing status

service

Formal delivery of legal documents under applicable rules.

IN USE confirm service details

proof of service

A record supporting that formal delivery occurred.

IN USE review proof of service

Precision check

Proposed, requested, agreed, signed, entered, and effective may describe different procedural states. The controlling source and legal effect require counsel review. This fictional exercise supplies no rule for calculating an actual deadline.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

deadline

The time by which a required action must occur.

IN USE verify the controlling deadline

extension

An authorized enlargement of the applicable time period.

IN USE confirm an extension

stipulation

An agreement between parties with context-dependent procedural effect.

IN USE review a proposed stipulation

proposed order

Draft wording submitted for possible court adoption.

IN USE distinguish a proposed order from an issued order

entered order

An order recorded through the court's process.

IN USE verify entry of the order

calendar entry

An internal scheduling record or reminder.

IN USE reconcile calendar entries

procedural posture

The stage and current status of litigation.

IN USE explain the procedural posture

jurisdiction

A court's authority or the relevant legal system in context.

IN USE identify the relevant jurisdiction

venue

The proper geographical location or forum for a proceeding.

IN USE distinguish venue from jurisdiction

continuance

A postponement of a proceeding under applicable procedure.

IN USE confirm a granted continuance

default

A failure to take a required procedural step, with context-specific consequences.

IN USE avoid an unsupported default conclusion

case management

Coordination of litigation steps and progress.

IN USE update the case-management record

Precision check

A filing deadline and service deadline may differ. A calendar entry can accurately record a date without establishing its legal basis. An unconfirmed extension must not silently replace the current verified obligation.

Phrases you can actually use

C Notice the language / 1 of 2

03

FLAG THE DISCREPANCY

"The task list contains two dates from different sources."

PRESERVE DOCUMENT STATUS

"The document is marked proposed, not confirmed as entered."

AVOID ASSUMING AN EXTENSION

"We have not confirmed any extension of time."

ASSIGN VERIFICATION

"Counsel needs to confirm which deadline governs this task."

IDENTIFY EACH SOURCE

"Twelve October comes from an internal email; fifteen October appears in a proposed schedule."

REQUEST AUTHORITY

"Please verify the controlling order and applicable rule."

SEPARATE RECORD AND RULE

"The calendar entry records a date; it does not establish its authority."

CLOSE THE ESCALATION

"I will keep the discrepancy visible until the verified instruction is recorded."

Proposed as a modifier

Retain proposed whenever naming a draft schedule; dropping it changes the apparent status.

Which governs

This asks about controlling authority rather than simply asking which date the team prefers.

Has been confirmed

The perfect tense connects an approval or verification event to the present status.

Phrases you can actually use

C Notice the language / 2 of 2

03

CLARIFY THE ACTION

"Does this date concern filing, service, or a hearing?"

AVOID CONVENIENCE-BASED CHOICE

"We should not choose the later date because it gives more time."

RECORD PROVENANCE

"Attach the source and review status to the confirmed calendar instruction."

DISTINGUISH A REQUEST

"A requested extension is not a confirmed extension."

CHECK A VERSION

"Is this the latest issued order or a circulated draft?"

PRESERVE THE EARLIER WARNING

"Do not remove the earlier reminder without verified instructions."

REPORT MISSING MATERIAL

"The signed scheduling order has not yet been located."

CONFIRM THE HANDOFF

"Please acknowledge who is verifying the deadline and when the team will be updated."

Filing versus service

Name the procedural act; "the document deadline" may combine distinct requirements.

Pending verification

This phrase must lead to an assigned verification task, not an indefinite postponement of attention.

Negative evidence

Not locating an order does not establish that no order exists.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which update preserves the document status?

- A** The deadline is extended because the team requested more time.
- B** The later date appears in a proposed schedule; counsel has not confirmed it controls.
- C** The court approved the later date because it appears in a file.
- D** The internal email automatically overrides every order.

2. Which question narrows the procedural task?

- A** Which date leaves the team more preparation time?
- B** Can a proposed schedule replace the reminder immediately?
- C** Does a later document automatically control an earlier one?
- D** Does the date govern filing, service, or the hearing?

3. What does an unconfirmed extension request establish?

- A** Every deadline is automatically suspended.
- B** The later requested date now controls.
- C** No further verification is needed.
- D** A request has been made, not that more time is authorized.

4. Which record is most useful after counsel verifies the instruction?

- A** A deleted history of the earlier discrepancy
- B** A statement that all future deadlines are settled
- C** The date, required act, authoritative source, and confirmation owner
- D** Only the later number without a source

Answers and explanations: [page 89](#).

Two dates in the task list, neither verified as controlling

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

extension / controlling source / proposed / procedural posture / authority / Filing / audit trail / handoff / deadline / case management

- 01 **Elise:** I found two dates for the response task: 12 October in the planning email and 15 October in a document called proposed schedule. Which should I put on the calendar?
- 02 **Karim:** Keep both sources visible while I verify the ¹ _____. Has anyone located an issued scheduling order or confirmed an extension affecting this task?
- 03 **Elise:** Not yet. The later document was circulated by the other team, but our copy does not show that the court signed or entered it. I nearly treated its title as enough.
- 04 **Karim:** Retain the word ² _____ in every update. We cannot turn a circulated schedule into an effective court direction just by copying its date into our task list.
- 05 **Elise:** I will check the authorized file sources and flag the missing order. Should I also confirm whether the response task means filing the document or serving it?
- 06 **Karim:** Yes. ³ _____ and service can be different requirements. Identify the procedural act before we try to resolve a date attached to an imprecise task description.
- 07 **Elise:** The email simply says response due. I will preserve that wording rather than silently changing it to a filing instruction.
- 08 **Karim:** Good. We need the relevant rule, order, and ⁴ _____. I will verify the legal effect; you can gather the sources and their recorded status.
- 09 **Elise:** The team has started planning around the fifteenth. That document looks formal, but I can't find an entry showing it was approved.
- 10 **Karim:** Appearance and convenience do not establish ⁵ _____. Do not remove the earlier reminder without verified instructions while we resolve the discrepancy promptly.

The conversation, continued

E Conversations / turns 11-20

03

Continue with the word bank on page 28.

- 11 **Elise:** I will mark the conflict unresolved and name you as reviewer, so nobody mistakes the later entry for a settled extension.
- 12 **Karim:** Exactly. A requested ⁶ _____ is not a confirmed one. If the record shows a request, report the request and keep its outcome separate.
- 13 **Elise:** What should I tell the team now? They need to plan work, but I do not want an administrative update to sound like an opinion on which deadline controls.
- 14 **Karim:** Say that two sources conflict and counsel is verifying the ⁷ _____. Identify the missing material, the owner, and the urgency without suggesting the uncertainty permits delay.
- 15 **Elise:** Once you confirm the instruction, I will record the required act, date, source reference, and who verified it. Should the earlier conflicting entries remain in the history?
- 16 **Karim:** Preserve the appropriate ⁸ _____ under the firm's procedure. Correct the operational instruction clearly, but do not erase the reason we investigated the mismatch.
- 17 **Elise:** I will also check whether any dependent preparation tasks used the later date. A correction could affect review time even if the filing work itself has not started.
- 18 **Karim:** That is useful ⁹ _____. Keep those planning consequences separate from the legal determination so the team knows which question each update answers.
- 19 **Elise:** I'll send both sources now and flag the conflict as urgent. I'll keep the earlier reminder while you verify the instruction, then update the team.
- 20 **Karim:** Thank you. A clear ¹⁰ _____ makes this safer: known sources, unknown controlling effect, named reviewer, and no assumption that a later date is automatically available.

ANSWERS / EXPLANATIONS: PAGE 90

1. deadline | 2. proposed | 3. Filing | 4. procedural posture | 5. authority | 6. extension | 7. controlling source | 8. audit trail | 9. case management | 10. handoff

A hearing postponement has only been requested

F Say it

A lawyer has requested that a hearing be postponed. The team has a copy of the request but no confirmation that it was granted. An assistant is updating internal reminders.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

verified / reviewer / status / request

Assistant: "The record shows a ¹ _____ for postponement, not a granted change."

Counsel: "Keep the current reminder until the controlling status is ² _____."

Assistant: "I will identify the source and retain its procedural ³ _____."

Counsel: "Then route any conflict back to the assigned ⁴ _____ rather than choosing a convenient date."

ANSWERS / EXPLANATIONS: PAGE 90

1. request | 2. verified | 3. status | 4. reviewer

Rehearse with a fixed script

1. Check the dialogue. Name each date's source: 12 October internal email, 15 October proposed schedule; neither is a verified controlling instruction here.
2. Switch roles. Escalate the discrepancy to Karim and preserve the earlier warning until verified instructions are recorded.
3. Complete the postponement exchange. Keep a requested change distinct from a granted change and retain the current reminder.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

An email chain awaiting a privilege decision

04

A Read the situation

Describe review status and preserve potentially protected material without making a privilege ruling.

Nora is reviewing electronically stored information for a supplier dispute. An email chain discusses commercial terms and includes a lawyer on one message. The chain is in the review set, not the production set. The approved workflow requires uncertain privilege issues to be flagged for Owen, reviewing counsel. A draft production list is due tomorrow, but no release of this chain has been authorized. The team must preserve the original record and explain its current status accurately.

PEOPLE / Nora: Document reviewer | Owen: Reviewing counsel

A REVIEW FLAG IS NOT A LEGAL DETERMINATION

Discovery conversations move quickly between operational labels and legal judgments. State whether an item was collected, reviewed, withheld, or produced. A lawyer appearing on an email is a fact to assess, not by itself a complete privilege analysis.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Where is the chain now?

- | | |
|---|--------------------------------------|
| A Already produced to the opposing party | B Deleted from the collection |
| C Filed publicly with the court | D In the review set |

2. Who should decide the uncertain privilege issue under this workflow?

- | | |
|--------------------------------------|--|
| A The commercial sender alone | B Anyone who sees a lawyer's name |
| C Owen, reviewing counsel | D Nora acting without review |

3. What does tomorrow's draft-list deadline authorize?

- | | |
|---|--|
| A Deleting uncertain items | B Declaring all copied lawyers' emails privileged |
| C Preparing an accurate status list, not releasing the chain | D Producing every collected document |

Answers and explanations: [page 91](#).

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

discovery

A process for obtaining relevant information in litigation under applicable rules.

IN USE manage discovery requests

ESI

Electronically stored information, including email and other digital records.

IN USE review collected ESI

custodian

A person associated with the control or location of relevant records.

IN USE identify a document custodian

collection

Gathering potentially relevant records through an authorized process.

IN USE document the collection process

preservation

Maintaining relevant information against inappropriate alteration or loss.

IN USE follow preservation instructions

legal hold

Instructions to preserve information for a legal matter.

IN USE issue an authorized legal hold

review set

Documents made available for examination and classification.

IN USE inspect the review set

production set

Documents selected and prepared for disclosure through an authorized process.

IN USE approve the production set

responsiveness

Whether material falls within the scope of a relevant request.

IN USE assess responsiveness

relevance

The relationship of information to an issue in the matter.

IN USE evaluate relevance

privilege review

Assessment of whether a legal protection applies to information.

IN USE escalate a privilege-review question

work product

A protection for specified litigation-preparation material under applicable law.

IN USE assess a work-product claim

Precision check

Relevance, responsiveness, and privilege answer different questions. Material may respond to a request yet require protection or redaction. A review flag records an unresolved issue; it does not authorize withholding or production on its own.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

redaction

Removal or masking of specified content from a disclosure copy.

IN USE approve a targeted redaction

privilege log

A record describing withheld material as required by applicable procedure.

IN USE prepare a privilege-log entry

metadata

Data describing a file, such as dates, authorship, or system attributes.

IN USE preserve relevant metadata

email thread

Related messages in a continuing email exchange.

IN USE review the complete email thread

attachment family

A parent document and its associated attachments.

IN USE keep an attachment family linked

deduplication

Identification or removal of duplicate copies in a controlled workflow.

IN USE document the deduplication method

Bates number

A sequential identifier applied to document pages in legal review or production.

IN USE cite the Bates number

clawback

A mechanism for seeking return or protection of inadvertently disclosed material.

IN USE review the applicable clawback procedure

deposition

Testimony taken outside trial under applicable procedural rules.

IN USE prepare for a deposition

exhibit

Material identified for use in testimony or a proceeding.

IN USE mark a deposition exhibit

transcript

A written record of spoken testimony or proceedings.

IN USE check the deposition transcript

review protocol

Instructions governing document assessment and escalation.

IN USE follow the review protocol

Precision check

Collection is not production. Redaction of an approved disclosure copy is not permission to alter the preserved original. Clawback protections depend on the governing arrangements and law; do not assume an accidental disclosure can always be undone.

Phrases you can actually use

C Notice the language / 1 of 2

LOCATE THE ITEM

"The chain remains in the review set."

FLAG UNCERTAINTY

"I have flagged a potential privilege issue for counsel."

AVOID A SHORTCUT

"The copied lawyer's name does not resolve the classification."

PRESERVE CONTEXT

"Please review the full thread and linked attachments."

SEPARATE QUESTIONS

"Responsiveness and privilege require separate assessments."

STATE THE HOLD

"This item has not been authorized for production."

IDENTIFY THE REFERENCE

"The review identifier is R-214; no production number is assigned."

CLOSE THE LOOP

"I will update the status after counsel records the decision."

Status verbs

Collected, reviewed, approved, and produced name different stages and must not be used interchangeably.

Potential versus established

A potential privilege issue is a reason for assessment, not a completed legal conclusion.

Still and yet

"Still in review" and "not yet approved" communicate an unfinished state without predicting the outcome.

Phrases you can actually use

C Notice the language / 2 of 2

DESCRIBE PRESERVATION

"The original record and its relevant metadata remain unchanged."

REQUEST INSTRUCTIONS

"Does the protocol require a separate entry for each attachment?"

CHECK TERMINOLOGY

"Are you asking whether it was collected or whether it was produced?"

SEPARATE TESTIMONY

"The witness's recollection and the email record should be identified separately."

QUALIFY A DRAFT

"This list identifies pending review, not final withholding decisions."

LIMIT A REDACTION

"Which passages are approved for redaction in the disclosure copy?"

ESCALATE TIMING

"The review question remains unresolved ahead of the draft-list deadline."

CONFIRM RELEASE

"Please confirm the authorized production version before release."

Original versus copy

Name which version may be changed so a redaction instruction cannot be mistaken for alteration of evidence.

Identifier precision

Distinguish an internal review identifier from a Bates number assigned for a particular production.

Agent clarity

"Counsel approved the redaction" is clearer than "the redaction was approved" when authority matters.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which status statement is supported?

- A** The chain is privileged because a lawyer was copied.
- B** The chain was disclosed when it was collected.
- C** The draft list authorizes production.
- D** The chain is flagged for counsel review and has not been produced.

2. Which record detail is an example of metadata?

- A** The wording of the asserted contractual promise
- B** A witness's explanation of the meeting
- C** The file's recorded creation time
- D** Counsel's conclusion that a message is privileged

3. Which instruction preserves the original?

- A** Delete the original passages before review.
- B** Replace the preserved thread with a summary.
- C** Remove all attachments to simplify the record.
- D** Apply only approved redactions to the disclosure copy.

4. Which phrase properly limits a review flag?

- A** A potential issue requiring counsel's assessment
- B** A final ruling that no disclosure is required
- C** An automatic waiver of protection
- D** Permission to produce without further approval

Answers and explanations: [page 91](#).

An email chain awaiting a privilege decision

E Conversations / turns 1-10

04

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

clawback / redaction / privilege review / status / Responsiveness / metadata / handoff / privilege log / Bates number / email thread

- 01 **Nora:** I found a chain about revised supplier terms. A lawyer appears on one message, so I flagged it instead of moving it into the production list.
- 02 **Owen:** Describe it as a potential issue in ¹ _____, not a final finding. Where is the chain currently located?
- 03 **Nora:** It is in the review set under R-214. Nothing from this chain has been released, and the original messages remain unchanged in the collection.
- 04 **Owen:** Keep that ² _____ explicit. A lawyer's presence may matter, but we need the content, purpose, participants, and applicable legal framework.
- 05 **Nora:** The opening messages concern price changes. A later message asks the lawyer a question, and two attachments appear relevant to the commercial discussion as well.
- 06 **Owen:** Retain the full ³ _____ and identify those attachments. Different parts may require different treatment, but the relationships must remain visible.
- 07 **Nora:** Should I mark the entire family nonresponsive while you assess it? That would remove it from tomorrow's draft list and avoid a premature disclosure decision.
- 08 **Owen:** No. ⁴ _____ answers a different question. Use the pending-review status in our protocol; do not hide uncertainty with an inaccurate classification.
- 09 **Nora:** Understood. The list will show that the item may respond to the request but awaits your privilege decision. It will not describe the material as finally withheld.
- 10 **Owen:** If a ⁵ _____ is appropriate, I will identify the approved passages and version. Do not alter the preserved original to prepare that copy.

The conversation, continued

E Conversations / turns 11-20

04

Continue with the word bank on page 37.

- 11 **Nora:** The platform displays creation and modification dates as well as email headers. I will retain those fields with the item rather than copying only visible text.
- 12 **Owen:** That preserves relevant ⁶ _____. Record processing issues separately so we do not mistake a display problem for a missing original message.
- 13 **Nora:** The list has a production-number column, but this item doesn't have one yet. Shall I leave R-214 as the internal reference and explain its status?
- 14 **Owen:** Use the internal identifier. A ⁷ _____ should come from the authorized numbering process, not an estimate added to make the list look finished.
- 15 **Nora:** If your decision is to withhold material, I can prepare the required descriptive entry for review without including the substance of any protected advice.
- 16 **Owen:** Follow the applicable ⁸ _____ requirements and our instructions. Check the description and asserted basis; do not copy them automatically from another matter.
- 17 **Nora:** A colleague suggested producing now and retrieving it later if necessary. I have not acted on that suggestion because the release decision remains unresolved.
- 18 **Owen:** Do not assume a ⁹ _____ eliminates every consequence. Continue the approved review and escalate timing concerns instead of relying on a possible later remedy.
- 19 **Nora:** I'll send you R-214 with the attachments and tomorrow's deadline. I'll mark it pending counsel review on the draft list so it doesn't get released accidentally.
- 20 **Owen:** That is a useful ¹⁰ _____. Once I record the decision, update the list and route the correct version through the authorized release process.

ANSWERS / EXPLANATIONS: PAGE 92

1. privilege review | 2. status | 3. email thread | 4. Responsiveness | 5. redaction | 6. metadata | 7. Bates number | 8. privilege log | 9. clawback | 10. handoff

An exhibit contains an unreviewed attachment

04

F Say it

A deposition preparation folder contains an email and a linked attachment. The email has been reviewed, but the attachment has not. The folder is internal; no exhibit release is authorized.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

family / release / unreviewed / history

Reviewer: "The attachment remains ¹ _____, even though the parent email has been checked."

Counsel: "Keep the document ² _____ visible so the relationship is not lost."

Reviewer: "I will flag the pending question before any exhibit ³ _____."

Counsel: "Record my decision in the review ⁴ _____ before updating the preparation set."

ANSWERS / EXPLANATIONS: PAGE 92

1. unreviewed | 2. family | 3. release | 4. history

Rehearse with a fixed script

1. Check the answers. Read R-214 as an internal review identifier, not an assigned production reference.
2. Switch roles. Preserve the thread and attachments, flag the potential privilege issue, and keep production unauthorized pending review.
3. Complete the exhibit exchange. Review of the parent email does not establish review or release of its attachment.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

A persuasive decision described as controlling

A Read the situation

Compare authorities and explain a qualified recommendation without overstating precedent.

Jon, an associate, has found a published appellate decision from another jurisdiction supporting a supplier-notice argument. His draft memorandum calls it controlling. Priya, supervising counsel, has asked for the governing forum, relevant statutory text, later treatment, and factual differences to be checked. Those checks are incomplete. The cited case involved written notice; this client used a telephone call. No recommendation has been approved for the client.

PEOPLE / Jon: Associate | Priya: Supervising counsel

STRENGTH COMES FROM AN ACCURATE LIMITATION

A useful research update identifies the best support and the strongest limitation in the same discussion. A confident voice is compatible with a qualified conclusion. Do not make an authority sound binding merely because it supports the preferred outcome.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What is the known source of the decision?

- A The identified controlling court in this matter
- C A final order in this client's case

- B An unsigned client email
- D An appellate court in another jurisdiction

2. Which factual difference is already known?

- A No notice of any kind in the cited decision
- C Identical written notices in both matters

- B Written notice in the decision versus a telephone call here
- D A final judgment against this client

3. What must happen before the recommendation is approved?

- A Replacement of the case citation with an assurance
- C Removal of all unfavorable information

- B The requested authority and factual checks
- D Automatic adoption of the supporting case

Answers and explanations: [page 93](#).

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

authority

A legal source used to support or govern an analysis.

IN USE evaluate the cited authority

binding precedent

A prior decision that a court must follow within applicable limits.

IN USE identify binding precedent

persuasive authority

A source that may influence reasoning without controlling the result.

IN USE rely on persuasive authority

jurisdiction

A legal territory or scope of a court's authority, depending on context.

IN USE confirm the relevant jurisdiction

hierarchy

The ordering of courts or sources that affects their relative authority.

IN USE map the court hierarchy

holding

A court's determination of an issue necessary to its decision.

IN USE identify the holding

dicta

Judicial observations not necessary to the decision's holding.

IN USE distinguish dicta from the holding

ratio decidendi

The legal reasoning necessary to a decision in systems using this term.

IN USE identify the ratio decidendi

statutory text

The wording of an enacted law.

IN USE examine the statutory text

regulation

A rule issued through an authorized administrative process.

IN USE check the applicable regulation

legislative history

Materials concerning the development of legislation.

IN USE assess relevant legislative history

secondary source

Commentary explaining or analyzing law rather than establishing it directly.

IN USE consult a secondary source

Precision check

A published decision is not automatically binding in another forum. Court hierarchy, jurisdiction, issue, and governing law matter. A database excerpt or summary can locate an issue but should not replace reading the relevant decision and checking its treatment.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

citation

A reference identifying a legal source or passage.

IN USE verify the citation

pinpoint citation

A reference to the precise location of supporting material.

IN USE add a pinpoint citation

subsequent treatment

How later authorities have addressed a decision.

IN USE check subsequent treatment

overruled

Displaced as precedent by an authorized later decision.

IN USE check whether the decision was overruled

distinguished

Treated as different in a way that limits an earlier decision's application.

IN USE explain why the case was distinguished

analogous

Similar in legally relevant respects.

IN USE identify analogous facts

material distinction

A difference that may affect the legal analysis.

IN USE address a material distinction

procedural posture

The stage and context in which a court decided an issue.

IN USE compare procedural posture

standard of review

The approach a reviewing court applies to a challenged determination.

IN USE identify the standard of review

counterargument

A reasoned position against the proposed analysis.

IN USE address the strongest counterargument

research memorandum

An organized explanation of a legal question, sources, and analysis.

IN USE revise the research memorandum

synthesis

A combined account of principles drawn from multiple sources.

IN USE develop a qualified synthesis

Precision check

Distinguishing a decision does not mean it has been overruled. A holding and dicta have different analytical roles. Preserve the actual basis of the court's decision rather than using every favorable sentence as though it resolved the present issue.

Phrases you can actually use

C Notice the language / 1 of 2

QUALIFY AUTHORITY

"This decision is potentially persuasive; controlling effect is not established."

LOCATE SUPPORT

"The relevant reasoning appears in the cited passage, not the summary heading."

SEPARATE STATUS

"The later court distinguished the case rather than overruling it."

FRAME THE RECOMMENDATION

"The argument is available, subject to the governing text and factual distinction."

IDENTIFY THE FORUM

"We first need to confirm which jurisdiction's law governs this issue."

STATE A DIFFERENCE

"The decision involved written notice; our facts involve a telephone call."

CHECK TREATMENT

"I will verify subsequent treatment before relying on the decision."

CLOSE WITH LIMITS

"The memorandum will state both the supporting reasoning and the unresolved checks."

Controls versus supports

Controls claims governing effect; supports describes assistance to an argument and requires less sweeping authority.

Although clauses

"Although the reasoning helps, the notice method differs" puts support and limitation in a single clear sentence.

On these facts

This phrase confines a proposition to an identified factual setting instead of announcing a universal rule.

Phrases you can actually use

C Notice the language / 2 of 2

DISTINGUISH REASONING

"Is that proposition part of the holding or an observation beyond it?"

REQUEST PRECISION

"Which passage supports that specific proposition?"

PRESERVE AN OBJECTION

"We should address the notice-method distinction rather than omit it."

STATE AN ASSUMPTION

"This section assumes that the identified law governs; that remains to be verified."

AVOID A SHORTCUT

"Publication alone does not establish binding effect in this forum."

COMPARE THE STAGE

"The cited decision arose on a different procedural posture."

EXPLAIN A SECONDARY SOURCE

"The commentary helps locate the issue but is not itself the governing enactment."

GIVE A BOUNDED UPDATE

"I have found support for the argument, not a guaranteed outcome."

By analogy

Explain the relevant similarity and difference when applying reasoning from a different factual situation.

Negative treatment

Name what a later court did; criticized, distinguished, and overruled are not synonyms.

Citation verbs

"The court held" should introduce a holding, while "the court observed" may signal a less central statement.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which wording avoids overstating the decision?

- A** It eliminates the need to read the statute.
- B** It may support the argument by analogy, subject to further checks.
- C** It guarantees success because it was published.
- D** It controls every court that hears a notice dispute.

2. Which phrase names later courts' handling of a case?

- A** document collection
- B** subsequent treatment
- C** client intake
- D** service of process

3. Which sentence preserves the known factual difference?

- A** The cited case used written notice, whereas our client called.
- B** Both cases involved the same written notice.
- C** Notice method is conclusively irrelevant.
- D** The court ruled on this client's telephone call.

4. Which action best supports a precise source reference?

- A** Quote only the search result because it names the case.
- B** Cite the whole decision without locating the relevant reasoning.
- C** Substitute a commentary summary for the passage being relied on.
- D** Add the page or paragraph supporting the proposition.

Answers and explanations: [page 93](#).

A persuasive decision described as controlling

E Conversations / turns 1-10

05

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

material distinction / distinguished / pinpoint citation / statutory text / counterargument / procedural posture / recommendation / subsequent treatment / persuasive authority / holding

- 01 **Jon:** I found a published appellate decision supporting our notice argument. My draft says it controls, but I have not finished checking the governing forum or later cases.
- 02 **Priya:** Change that label for now. It may be ¹ _____, but another jurisdiction's published decision does not automatically govern this matter.
- 03 **Jon:** The favorable paragraph says the notice served its purpose. I relied on that language, although the case involved a letter and our client made a telephone call.
- 04 **Priya:** That difference may be a ² _____. Identify the actual notice requirement before deciding how closely the facts align.
- 05 **Jon:** I will retrieve the relevant provision and check which law applies. The commentary I consulted discusses practical notice, but it does not reproduce the complete provision.
- 06 **Priya:** Read the ³ _____ in its proper context and current form. Identify any applicable definitions or qualifications instead of relying only on the commentary's shorthand.
- 07 **Jon:** Should I keep the favorable paragraph in the memorandum while those checks are open? Removing it entirely would hide an argument that could still help the client.
- 08 **Priya:** Keep it with accurate status. Then establish whether the proposition is the ⁴ _____ or a broader observation not necessary to the decision.
- 09 **Jon:** The court also discussed an alternative ground. I need to trace which ground supported the result before describing every sentence as a rule we can invoke.
- 10 **Priya:** Exactly. Check the ⁵ _____ too. A decision about whether allegations suffice may not establish the final facts or liability after evidence is tested.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 46.

05

- 11 **Jon:** One later decision cites this case but reaches the opposite outcome. The brief summary says the notice circumstances were different, not that the earlier decision was rejected.
- 12 **Priya:** Describe that as a case potentially being ⁶ _____, pending your full reading. Do not substitute overruled simply because the outcomes differ.
- 13 **Jon:** I'll read the later decision in full. Its summary is too short to tell whether the court rejected the rule or just found different facts.
- 14 **Priya:** Good. Record the ⁷ _____ accurately and verify the citation. The reader needs the actual authority, not a compressed label copied without examination.
- 15 **Jon:** For the analysis section, I can explain the functional-notice argument and then address the written-versus-oral difference. That gives the reviewing lawyer both sides of the comparison.
- 16 **Priya:** Include the strongest ⁸ _____. A useful memorandum tests the recommendation, rather than gathering only sentences that favor our preferred result.
- 17 **Jon:** I will also replace the broad citation with the specific paragraph supporting the proposition. That should make it easier to check whether my summary is faithful.
- 18 **Priya:** A ⁹ _____ helps. Keep the quotation brief and make your own reasoning explicit; the passage should support the analysis rather than stand in for it.
- 19 **Jon:** I'll call it a potentially useful analogy and flag the notice-method difference. Can we discuss the recommendation after I finish the governing-law and treatment checks?
- 20 **Priya:** That is an appropriately bounded ¹⁰ _____. Send the revised memorandum with the outstanding checks clearly identified before anything goes to the client.

ANSWERS / EXPLANATIONS: PAGE 94

1. persuasive authority | 2. material distinction | 3. statutory text | 4. holding | 5. procedural posture | 6. distinguished | 7. subsequent treatment | 8. counterargument | 9. pinpoint citation | 10. recommendation

A summary article is not the regulation

F Say it

An assistant finds a trade article saying a regulatory exception applies broadly. The team has not checked the current regulation, defined terms, or amendments. Counsel has requested the underlying sources.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

text / secondary / unverified / memorandum

Assistant: "The article is a ¹ _____ source, not the governing regulation."

Counsel: "Retrieve the current ² _____ and relevant definitions."

Assistant: "I will flag the claimed exception as ³ _____ until that review."

Counsel: "Keep the source references attached to the research ⁴ _____."

ANSWERS / EXPLANATIONS: PAGE 94

1. secondary | 2. text | 3. unverified | 4. memorandum

Rehearse with a fixed script

1. Check the dialogue. Contrast another jurisdiction's decision and written notice with this client's telephone call.
2. Switch roles. Retain the forum, governing-text and later-treatment checks; say persuasive support rather than established controlling authority.
3. Complete the article exchange. Request the current regulation and definitions, keeping the claimed exception unverified.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Changing delivery time without conceding the whole clause

A Read the situation

Propose a precise amendment, preserve linked terms, and distinguish a negotiating position from acceptance.

06

A draft services agreement requires delivery within ten days after a purchase order. Operations needs fifteen business days after receipt of complete specifications. The draft does not define business day or explain incomplete specifications. Elena, commercial counsel, and Marcus, operations director, are preparing a proposed redline. The customer has not accepted any change, and neither participant has approval to concede remedies or liability limits. Their task is to define the proposed timing change and identify related questions for review.

PEOPLE / Marcus: Operations director | Elena: Commercial counsel

NEGOTIATE THE VARIABLE, NOT AN UNDEFINED PACKAGE

A conversational "that works" may hide different assumptions about the clock, trigger, or scope of agreement. Restate the exact proposed term and identify what remains unchanged or unresolved. A redline is a proposal until the relevant approvals and agreement are established.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What timing does operations need?

- | | |
|---|--|
| A Fifteen business days after complete specifications are received | B Ten days after any purchase order |
| C Fifteen calendar days after signature | D Unlimited time with no trigger |

2. What has the customer accepted?

- | | |
|----------------------------------|--|
| A Removal of all remedies | B A new liability cap |
| C No change yet | D The complete proposed redline |

3. What falls outside the participants' current approval?

- | | |
|---|---|
| A Preparing a proposed redline | B Explaining the operational requirement |
| C Conceding remedies or liability limits | D Identifying undefined timing terms |

Answers and explanations: [page 95](#).

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

redline

A version showing proposed changes to existing wording.

IN USE circulate a proposed redline

markup

Edits or comments displayed on a draft document.

IN USE reconcile competing markups

operative clause

Wording that establishes a substantive term or obligation.

IN USE revise the operative clause

defined term

A word or phrase assigned a specified meaning in a document.

IN USE use the defined term consistently

business day

A working day as defined by the relevant agreement or rule.

IN USE clarify the business-day definition

trigger event

The occurrence that starts an obligation or time period.

IN USE identify the trigger event

condition precedent

An event that must occur before a specified duty or effect arises.

IN USE review the proposed condition precedent

covenant

A contractual promise to do or refrain from doing something.

IN USE assess the covenant wording

representation

A statement of fact with legal significance in context.

IN USE qualify the representation

warranty

A contractual assurance whose effect depends on its terms and governing law.

IN USE review the warranty scope

indemnity

An obligation to bear specified losses or liabilities under agreed terms.

IN USE negotiate the indemnity provision

limitation of liability

A clause restricting specified liability under defined conditions.

IN USE preserve the limitation of liability

Precision check

Ten days after a purchase order and fifteen business days after complete specifications differ in both duration and trigger. Replacing only the numeral leaves the operational problem unresolved. The relevant calendar and completion standard also need clear drafting.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

liability cap

A stated upper limit on specified liability.

IN USE verify the liability cap

carve-out

An exception to a provision's general scope.

IN USE define the carve-out narrowly

cure period

Time allowed to remedy a specified failure.

IN USE negotiate the cure period

termination right

A contractual ability to end an agreement under stated conditions.

IN USE clarify the termination right

notice provision

Terms governing how required notices are given.

IN USE follow the notice provision

order of precedence

A rule for resolving conflicts among contract documents.

IN USE check the order of precedence

entire agreement clause

A clause addressing which materials comprise the parties' agreement.

IN USE review the entire agreement clause

amendment mechanism

The required process for changing an agreement.

IN USE follow the amendment mechanism

effective date

The date from which an agreement or change has stated effect.

IN USE confirm the effective date

execution copy

A version prepared for signing after the required review.

IN USE verify the execution copy

fallback position

An alternative negotiating position available within authority.

IN USE confirm the approved fallback position

reservation of rights

A statement intended to preserve identified rights or positions.

IN USE review the reservation of rights

Precision check

A proposed redline is not an execution copy. A commercial concession on timing does not automatically approve a change to remedies, indemnity, or liability. Authority, agreement, and formal amendment requirements must be checked separately.

Phrases you can actually use

C Notice the language / 1 of 2

STATE THE REQUIREMENT

"Operations needs fifteen business days after receipt of complete specifications."

CLARIFY THE DEFINITION

"Which calendar does the business-day definition use?"

PRESERVE STATUS

"The proposed wording remains subject to approval and customer agreement."

SEPARATE CONCESSIONS

"No change to remedies has been authorized."

IDENTIFY BOTH CHANGES

"We are proposing a different period and a different starting event."

LIMIT THE PROPOSAL

"This markup addresses delivery timing, not the liability allocation."

CHECK COMPLETENESS

"We need an objective way to identify the required specifications."

CLOSE WITH A REDLINE

"I will circulate the marked clause and list the linked provisions for review."

Within versus after

Within sets a deadline relative to a trigger; after names the trigger relationship without necessarily defining the endpoint alone.

Calendar qualification

State calendar or business days when the distinction matters, and check the agreement's definition.

Subject to approval

Attach this phrase to the proposal so internal readiness cannot be mistaken for authorized acceptance.

Phrases you can actually use

C Notice the language / 2 of 2

AVOID AMBIGUITY

"Does "received" mean received through the agreed submission channel?"

REQUEST A FALLBACK

"Which alternative timing position has the business approved?"

PRESERVE A LIMIT

"Please keep the unresolved calendar definition visible in the comments."

REJECT IMPLIED ACCEPTANCE

"Preparing the change does not establish customer acceptance."

EXPLAIN THE DEPENDENCY

"We cannot start the production clock without the specified inputs."

CHECK INTERACTION

"Does the purchase order conflict with the main agreement?"

CONFIRM THE VERSION

"Is this the approved execution copy or an earlier negotiating draft?"

MAKE A BOUNDED COMMITMENT

"I can confirm the proposed wording, not promise that it will be accepted."

Without changing

Use this phrase to limit a revision's intended scope, but still inspect linked clauses for unintended effects.

Proposal verbs

Propose and request are different from agree and accept; the verb should match the negotiating stage.

Version language

Draft, redline, clean copy, and execution copy identify document states, not interchangeable file descriptions.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which proposal captures operations' stated need?

- A** Delivery whenever convenient
- B** Fifteen business days after receipt of complete specifications
- C** Fifteen days after a purchase order, with no other clarification
- D** Ten business days after a signature

2. Which sentence accurately describes authority?

- A** Any marked clause is automatically binding.
- B** We can propose timing changes, but no remedy concession is approved.
- C** We may waive remedies because timing is difficult.
- D** The customer accepted our internal discussion.

3. Which phrase identifies competing document priority?

- A** order of precedence
- B** governing-law provision
- C** notice provision
- D** limitation of liability

4. Which status statement is appropriate before customer agreement?

- A** The original clause has been legally replaced.
- B** The customer has conceded every linked issue.
- C** The redline is a proposal subject to approval and agreement.
- D** The execution copy has already been signed.

Answers and explanations: [page 95](#).

Changing delivery time without conceding the whole clause

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

06

WORD + PHRASE BANK

scope / trigger event / execution copy / propose / concession / order of precedence / fallback position / redline / business day / defined term

- 01 **Marcus:** The draft starts ten days at the purchase order. We need fifteen business days after complete specifications arrive. Changing the number alone won't solve it.
- 02 **Elena:** Agreed. The ¹ _____ needs to show both changes. We'll keep them visible instead of presenting this as a simple five-day extension.
- 03 **Marcus:** An order can arrive without the dimensions. Under the present wording the clock would run even though the inputs needed for production are missing.
- 04 **Elena:** Then receipt of complete specifications is the proposed ² _____. The order alone doesn't start that proposed clock unless the required specifications have actually been received.
- 05 **Marcus:** I'll list the required inputs in a schedule. Can we use that same list wherever the agreement refers to complete specifications?
- 06 **Elena:** Yes. A consistent ³ _____ will help connect the schedule and operative clause. We still need to check how completeness and receipt will be identified.
- 07 **Marcus:** The customer and our production team use different holiday calendars. Fifteen working days may end on different dates depending on which calendar they mean.
- 08 **Elena:** That's why the ⁴ _____ definition needs agreement. Don't leave the relevant weekends and holidays to assumption.
- 09 **Marcus:** Procurement may ask for a shorter cure period in return. Can I offer that now to make the delivery proposal easier to accept?
- 10 **Elena:** No such ⁵ _____ is authorized. A remedy change needs its own review; it isn't included merely because we're discussing delivery timing.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 55.

- 11 **Marcus:** Then I need instructions on alternatives before the call. Otherwise I could agree to something the business hasn't assessed.
- 12 **Elena:** Correct. Request an approved ⁶ _____. Until then, explain the timing requirement without inventing another concession.
- 13 **Marcus:** The purchase order template also carries ten days. Updating the main agreement could leave two competing delivery clauses in circulation.
- 14 **Elena:** Flag that conflict and the ⁷ _____ provision. We should reconcile the documents, not assume the customer will choose our preferred wording.
- 15 **Marcus:** For today's message, can I say the new timing is agreed internally, or would that blur the status before approval?
- 16 **Elena:** Say we ⁸ _____ fifteen business days after complete specifications, subject to approval and customer agreement. That states the request without implying a completed amendment.
- 17 **Marcus:** There are two marked versions. Once wording is approved and accepted, we'll need to confirm which changes belong in the signing version.
- 18 **Elena:** Yes. Reconcile them before preparing the ⁹ _____. Removing visible markup doesn't itself establish that every term is approved.
- 19 **Marcus:** I'll send the input schedule, calendar question and template conflict with the proposed clause. No remedy or liability change will be included.
- 20 **Elena:** That keeps the ¹⁰ _____ clear. We can review a defined timing proposal instead of discovering unrelated concessions inside the clean document.

06

ANSWERS / EXPLANATIONS: PAGE 96

1. redline | 2. trigger event | 3. defined term | 4. business day | 5. concession | 6. fallback position | 7. order of precedence | 8. propose | 9. execution copy | 10. scope

A renewal date changes, but termination language does not

F Say it

A team is authorized to propose a new renewal date. The notice period and termination rights remain under separate review. The counterparty has not accepted the date change.

06

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

proposal / copy / unresolved / authorized

Commercial lead: "Our ¹ _____ changes the renewal date only."

Counsel: "Keep the separate notice-period question ² _____ in the review note."

Commercial lead: "No change to termination rights is currently ³ _____."

Counsel: "Confirm the accepted wording before preparing the execution ⁴ _____."

ANSWERS / EXPLANATIONS: PAGE 96

1. proposal | 2. unresolved | 3. authorized | 4. copy

Rehearse with a fixed script

1. Check the answers. Read both proposed changes: fifteen business days and receipt of complete specifications, not just a replacement numeral.
2. Switch roles. Name the missing calendar definition and purchase-order conflict; do not add an unauthorized remedy concession.
3. Complete the renewal exchange. Keep the notice period unresolved and termination rights outside the approved date proposal.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

An interview account is not an investigation finding

A Read the situation

Attribute evidence, protect the investigation process, and communicate an unresolved allegation neutrally.

During an internal interview, an employee tells Ruth, the investigator, that a vendor offered a purchasing manager a personal benefit. The employee did not attend the alleged meeting and says a colleague described it. No transaction records or messages have been reviewed. Ben, the compliance director, must brief a small authorized team. A business manager has asked him to announce that a violation occurred. No finding or disclosure decision has been approved.

PEOPLE / Ruth: Investigator | Ben: Compliance director

07

NEUTRAL LANGUAGE PROTECTS THE INQUIRY

Neutrality is not evasiveness. A report can state a serious allegation clearly while identifying its source and limits. Keep access within the authorized process, avoid promises about absolute secrecy, and do not confuse an interim protective step with a final finding.

Briefing checks

Circle one answer in each item. Use the briefing.

1. What is the employee's knowledge source?

A A reviewed bank transfer

B An approved investigation report

C A colleague's account of a meeting the employee did not attend

D Personal attendance at the alleged meeting

2. What evidence review is already complete?

A A full review proving a violation

B A regulator's final determination

C An independent audit clearing all parties

D Neither transaction records nor messages have been reviewed

3. What should Ben communicate to the authorized team?

A A guarantee that no issue exists

B A reported allegation and the current limits of the inquiry

C A confirmed violation

D A public accusation approved by counsel

Answers and explanations: [page 97](#).

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

compliance

Adherence to applicable obligations and internal requirements.

IN USE assess a compliance concern

internal investigation

An organized inquiry conducted within or for an organization.

IN USE scope an internal investigation

alleged misconduct

Conduct reported as potentially improper but not yet established.

IN USE describe alleged misconduct neutrally

reporting person

Someone who brings a concern to attention.

IN USE protect the reporting person's information

firsthand knowledge

Information gained through direct observation or experience.

IN USE distinguish firsthand knowledge

secondhand account

Information received from another person's description.

IN USE attribute a secondhand account

interview record

A documented account of an investigative conversation.

IN USE verify the interview record

corroborating record

Material that independently supports a reported point.

IN USE seek a corroborating record

finding

A conclusion reached through an identified review process.

IN USE approve an investigation finding

substantiated

Supported to the relevant standard in the applicable process.

IN USE explain a substantiated finding

unsubstantiated

Not established to the relevant standard on the available review.

IN USE distinguish unsubstantiated from disproved

exculpatory information

Information tending against responsibility or an allegation.

IN USE preserve exculpatory information

Precision check

A secondhand account may identify an important lead, but it is not firsthand observation. A finding requires the appropriate assessment under the applicable process. Unsubstantiated does not necessarily mean false, and an interim measure does not itself establish wrongdoing.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

document retention

Rules and practices for keeping records.

IN USE follow document-retention requirements

access restriction

A limit on who may view or use information.

IN USE apply an authorized access restriction

need to know

A purpose-based limit on information access.

IN USE restrict access on a need-to-know basis

retaliation

Adverse treatment connected to protected reporting or participation in context.

IN USE escalate a retaliation concern

non-retaliation

A policy or obligation against improper adverse treatment for reporting.

IN USE explain non-retaliation expectations

remediation

Corrective action addressing an identified issue or weakness.

IN USE propose proportionate remediation

interim measure

A temporary step while assessment continues.

IN USE explain the purpose of an interim measure

root cause

An underlying factor contributing to a problem.

IN USE assess the root cause

control deficiency

A weakness in a process intended to prevent or detect problems.

IN USE document a control deficiency

reporting obligation

A duty to provide information to a specified recipient.

IN USE assess a reporting obligation

regulatory inquiry

A request or investigation by an oversight authority.

IN USE coordinate a regulatory-inquiry response

investigation mandate

The authorized scope and purpose of an inquiry.

IN USE confirm the investigation mandate

Precision check

Internal confidentiality instructions do not authorize interference with lawful reporting or protected participation. Access, preservation, reporting duties, interview procedures, and legal protections require review under applicable law and policy; do not invent assurances about them.

Phrases you can actually use

C Notice the language / 1 of 2

ATTRIBUTE THE CONCERN

"The employee reports what a colleague described."

PRESERVE NEUTRALITY

"The allegation has not yet been substantiated."

LIMIT DISTRIBUTION

"This update is for the specifically authorized review team."

SEPARATE ACTION AND FINDING

"The interim step does not establish that misconduct occurred."

STATE A KNOWLEDGE LIMIT

"The employee did not attend the alleged meeting."

IDENTIFY MISSING EVIDENCE

"The relevant records and messages remain unreviewed."

AVOID A GUARANTEE

"I cannot promise absolute confidentiality in every circumstance."

CLOSE WITH A REVIEW TASK

"We will seek the identified records under the approved investigation process."

Allegedly

Place this qualifier next to the conduct being reported, not so vaguely that the whole sentence becomes unclear.

Reported speech

"The employee said a colleague described..." preserves the two-stage source chain.

Not established

This phrase limits the finding without implying that the allegation is false.

Phrases you can actually use

C Notice the language / 2 of 2

CORRECT OVERSTATEMENT

"Please replace "violation confirmed" with the current factual status."

PROTECT COMPLETENESS

"Include information that may support or contradict the allegation."

CLARIFY THE MANDATE

"Does the approved scope include this additional transaction?"

EXPLAIN STATUS

"No final finding or disclosure decision has been approved."

SEEK A SOURCE

"Who directly observed the event described in the account?"

PRESERVE RECORDS

"Follow the approved preservation instruction without altering the originals."

FLAG AUTHORITY

"Any external reporting decision requires the assigned legal review."

AVOID RETALIATION

"Escalate any concern about adverse treatment through the authorized channel."

Status and action

State an interim measure separately from the evidence assessment to avoid suggesting that action proves guilt.

Need to know

Identify the authorized recipients; the phrase alone does not decide who qualifies.

Absolute words

Always, never, and guaranteed can create unsupported promises about confidentiality or outcomes.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which sentence preserves the source chain?

- A** The employee witnessed the offer personally.
- B** The records prove the payment.
- C** The investigation has confirmed a violation.
- D** The employee says a colleague described the alleged offer.

2. What does unsubstantiated necessarily mean here?

- A** The reporting employee fabricated the account.
- B** A secondhand report can never justify further investigation.
- C** The allegation has not been established under the relevant process.
- D** The allegation has been disproved after a completed inquiry.

3. Which description avoids treating an interim measure as proof?

- A** The temporary step eliminates all review duties.
- B** The temporary step is precautionary; no finding is approved.
- C** The temporary step proves misconduct.
- D** The temporary step is a final court judgment.

4. Which communication requires additional authorized review?

- A** A neutral update to the authorized review team
- B** Identifying an unreviewed record
- C** Preserving the source of an account
- D** An external disclosure decision

[Answers and explanations: page 97.](#)

An interview account is not an investigation finding

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

reporting obligation / interim measure / unsubstantiated / investigation finding / access restriction / secondhand account / corroborating evidence / exculpatory information / non-retaliation / investigation mandate

07

- 01 **Ruth:** The employee described a possible personal benefit offered by a vendor. I want the briefing to preserve that the employee heard this from a colleague, not firsthand.
- 02 **Ben:** Then lead with the ¹ _____. The concern is serious, but the wording must not suggest the employee attended the meeting or saw a payment.
- 03 **Ruth:** No messages or transaction records have been reviewed yet. The interview gives us a lead to follow, and I have recorded the source as the employee described it.
- 04 **Ben:** Say the allegation remains ² _____ at this stage. That status should neither dismiss the concern nor turn it into a finding before the evidence is assessed.
- 05 **Ruth:** The business manager wants an announcement that a violation occurred. I told her no finding has been approved and that the authorized team is still gathering information.
- 06 **Ben:** That is correct. An ³ _____ must follow the appropriate assessment and approval. We cannot create one simply to make the business update more decisive.
- 07 **Ruth:** I will request the relevant records through the approved process. I also want to identify the colleague who may have direct knowledge of the alleged conversation.
- 08 **Ben:** Good. Seek ⁴ _____, but preserve material that points the other way as well. The inquiry should test the account, not only accumulate support for it.
- 09 **Ruth:** The employee also mentioned a message about a company event. We haven't reviewed it, but the offer might relate to that rather than a personal benefit.
- 10 **Ben:** Include that potential ⁵ _____ for assessment. Do not resolve its meaning now, and do not leave it out because it complicates the initial theory.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 64.

- 11 **Ruth:** For distribution, I have a small list of specifically authorized reviewers. The business manager asked for the interview notes to be sent to the entire department.
- 12 **Ben:** Keep the approved ⁶ _____. Route the wider request for review rather than forwarding the notes informally or promising that nobody else will ever see them.
- 13 **Ruth:** The employee asked whether anyone else would see the notes. I explained the approved handling process, but didn't promise that the notes would stay only with me.
- 14 **Ben:** That is important. Explain applicable ⁷ _____ expectations through the approved guidance too. Any concern about adverse treatment should reach the designated channel promptly.
- 15 **Ruth:** Operations is considering a temporary change to who approves this vendor's transactions. They want to know whether announcing that step means we have already determined wrongdoing.
- 16 **Ben:** Describe it as an ⁸ _____ if that is its approved purpose. State separately that no final finding is authorized; do not let the action imply a conclusion.
- 17 **Ruth:** I will keep the factual chronology, evidence requests, and approval status separate in the update. A potential regulator notification will be listed as a question for legal review.
- 18 **Ben:** Yes. A possible ⁹ _____ requires its own assessment. Neither public silence nor immediate disclosure should be assumed correct without that review.
- 19 **Ruth:** The briefing will say what was reported, how the employee learned it, which records remain unchecked, and who owns each next step. It will not name a confirmed violation.
- 20 **Ben:** That fits the current ¹⁰ _____. Send it to the approved recipients with the source limitation intact, and escalate any material change through the designated process.

07

ANSWERS / EXPLANATIONS: PAGE 98

1. secondhand account | 2. unsubstantiated | 3. investigation finding | 4. corroborating evidence | 5. exculpatory information | 6. access restriction | 7. non-retaliation | 8. interim measure | 9. reporting obligation | 10. investigation mandate

Missing approvals, uncertain intent

F Say it

A review finds that two invoice approvals were not recorded. The team has not determined why, whether an exception applied, or whether anyone acted deliberately. A manager requests a misconduct label.

Complete the four gaps. Use each bank entry once.

07

WORD + PHRASE BANK

deficiency / intent / finding / review

Reviewer: "Missing records do not establish ¹ _____."

Counsel: "Describe the possible control ² _____ and required checks."

Reviewer: "The cause and any applicable exception remain under ³ _____."

Counsel: "Separate the temporary step from the final ⁴ _____."

ANSWERS / EXPLANATIONS: PAGE 98

1. intent | 2. deficiency | 3. review | 4. finding

Rehearse with a fixed script

1. Check the dialogue. Preserve the source chain: the employee reports a colleague's account and did not attend the meeting.
2. Switch roles. Retain unreviewed records and possible contradictory evidence; distinguish the allegation, interim measure and final finding.
3. Complete the invoice exchange. Missing approvals do not establish deliberate misconduct or settle whether an exception applied.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Settlement priorities without settlement authority

A Read the situation

Explain negotiating tradeoffs, distinguish proposals from client instructions, and preserve limits on authority.

A dispute team is preparing a settlement discussion. The business contact prioritizes payment within thirty days, while the client decision-maker also wants confidentiality. The opposing side has floated a payment figure but supplied no written terms. Nadia, counsel, and Tomas, the client representative, must prepare the options for the decision-maker. Tomas may collect information but cannot approve a settlement. No release, confidentiality wording, payment schedule, or authority range has been approved.

PEOPLE / Tomas: Client representative | Nadia: Counsel

08

FIRM ADVOCACY STILL HAS BOUNDARIES

A persuasive presentation makes a position and its reasons clear without manufacturing instructions or promising an outcome. Distinguish what the other side suggested, what the client values, what counsel recommends, and what the authorized decision-maker has actually approved.

Briefing checks

Circle one answer in each item. Use the briefing.

1. Which priority belongs to the business contact?

- | | |
|--|---|
| A A final court judgment | B Payment within thirty days |
| C An unlimited release already accepted | D A promise never to report any matter |

2. What can Tomas currently do?

- | | |
|--|---|
| A Approve the complete settlement | B Accept any floated figure |
| C Sign the release without review | D Collect information for the decision-maker |

3. Which terms are approved?

- | | |
|--|--|
| A None of the listed settlement terms | B A complete release and confidentiality clause |
| C The final payment schedule | D A binding authority range |

Answers and explanations: page 99.

The vocabulary that does the work

B Find the words / 1 of 2

Read the definitions and say the common word combinations aloud.

advocacy

Reasoned presentation of a position for a client or cause.

IN USE present measured advocacy

settlement

An agreement resolving specified claims or disputes.

IN USE negotiate settlement terms

settlement authority

Permission to negotiate or agree within specified limits.

IN USE confirm settlement authority

offer

A proposal whose legal effect depends on its terms and context.

IN USE clarify the offer terms

counteroffer

A response proposing different terms from an earlier offer.

IN USE prepare an authorized counteroffer

term sheet

A summary of proposed or agreed principal terms, with effect depending on context.

IN USE review the term sheet's status

release

Wording relinquishing specified claims or rights under agreed terms.

IN USE define the release scope

mutual release

Releases given by more than one party as specified.

IN USE negotiate a mutual release

confidentiality clause

Terms restricting specified use or disclosure of information.

IN USE review confidentiality exceptions

non-disparagement

Restrictions on specified adverse statements about a party.

IN USE distinguish non-disparagement from confidentiality

no admission

Wording addressing whether agreement acknowledges liability or wrongdoing.

IN USE review the no-admission clause

payment schedule

Agreed timing and structure of payments.

IN USE confirm the payment schedule

08

Precision check

A floated payment figure is not a complete account of settlement terms. Payment timing, release scope, confidentiality, and approval authority may change the decision. Do not describe a proposal as accepted when the authorized client decision has not occurred.

The vocabulary that does the work

B Find the words / 2 of 2

Read the definitions and say the common word combinations aloud.

installment

One payment in a series.

IN USE specify the installment amount

default provision

Terms addressing failure to meet an agreed obligation.

IN USE assess the default provision

enforcement

Steps to secure compliance with an obligation or decision.

IN USE assess enforcement options

dismissal

Termination of claims or proceedings through the applicable process.

IN USE coordinate the dismissal documentation

with prejudice

A label generally indicating a final bar on bringing the dismissed claim again, subject to law.

IN USE review dismissal with prejudice

without prejudice

A context-dependent label concerning rights, proceedings, or negotiations.

IN USE clarify the effect of without-prejudice wording

mediation

A facilitated negotiation process using a neutral participant.

IN USE prepare for mediation

mediator

A neutral person helping parties seek a negotiated resolution.

IN USE clarify the mediator's role

caucus

A separate meeting within a mediation or negotiation process.

IN USE request an authorized caucus

impasse

A point at which negotiations are not progressing.

IN USE identify the source of an impasse

reservation price

A negotiating limit used internally under specified assumptions.

IN USE protect the approved reservation price

informed instruction

A client direction given after adequate explanation of relevant matters.

IN USE obtain an informed instruction

Precision check

Labels such as without prejudice, confidential, and no admission do not create identical protections everywhere. Their effect depends on the applicable law and context. A confidentiality proposal must not be used to assume prohibited restrictions on lawful disclosures.

Phrases you can actually use

C Notice the language / 1 of 2

STATE THE STATUS

"The other side floated a figure; written terms are not available."

CONFIRM AUTHORITY

"Who may authorize a counteroffer, and within what limits?"

REQUEST THE PACKAGE

"Please identify the release, payment, and confidentiality terms together."

PRESERVE THE DECISION

"The final instruction belongs to the authorized client decision-maker."

SEPARATE PRIORITIES

"Payment timing and confidentiality are distinct negotiating questions."

LIMIT THE RESPONSE

"I can gather information, but I cannot approve the settlement."

EXPLAIN A TRADEOFF

"An earlier payment may be valuable, but the linked conditions still require review."

CLOSE WITH NEXT STEPS

"We will present the options and seek a clear instruction before responding."

08

Authority versus preference

A preferred outcome does not by itself authorize someone to agree to the terms needed to obtain it.

Float versus offer

Float usually describes a tentative suggestion; clarify its status rather than assuming formal legal effect.

Condition placement

Put a material condition next to the commitment it limits, not at the end of a separate email.

Phrases you can actually use

C Notice the language / 2 of 2

AVOID A GUARANTEE

"We can explain the proposal's implications, not promise acceptance."

CLARIFY THE RELEASE

"Which claims and parties would the proposed release cover?"

CHECK EXCEPTIONS

"The confidentiality wording needs review for required or protected disclosures."

IDENTIFY INCOMPLETENESS

"Agreement on a number alone does not settle the remaining terms."

CHECK THE TRIGGER

"From which event would the thirty-day payment period run?"

SEPARATE CONCEPTS

"Non-disparagement and confidentiality do not regulate exactly the same conduct."

REPORT THE LIMIT

"The current authority does not extend to that concession."

CONFIRM INSTRUCTIONS

"Please confirm the approved position and any conditions attached to it."

08

From versus by

A payment due within thirty days from an event differs from a payment due by a fixed date.

Could versus will

Could describes a possible outcome; will may sound like a promise and needs appropriate support.

Approval verbs

Recommend, instruct, approve, and accept identify different actors and stages in a settlement decision.

Choose the precise message

D Check your understanding

Circle one best answer for each item. Use the stated purpose and case facts, not the option that merely sounds most polite.

1. Which response fits Tomas's authority?

- A** I accept on behalf of every client entity.
- B** Any figure discussed is automatically approved.
- C** I can waive the release review to save time.
- D** I can collect the terms for the decision-maker but cannot approve them.

2. Which question identifies the missing start of the payment period?

- A** Which currency will the settlement use?
- B** Which claims will the release cover?
- C** Who can approve the counteroffer?
- D** What event starts the thirty-day payment period?

3. Which statement correctly separates two restrictions?

- A** Neither requires review of its actual wording.
- B** Confidentiality concerns disclosure; non-disparagement concerns specified adverse statements.
- C** They always have identical wording and effect.
- D** Either label automatically overrides every reporting duty.

4. Which description fits the current proposal?

- A** An accepted release of every claim
- B** Incomplete terms awaiting review and client instruction
- C** A fully authorized signed settlement
- D** A final judgment requiring payment

Answers and explanations: page 99.

Settlement priorities without settlement authority

E Conversations / turns 1-10

Complete the numbered gaps. Use each bank entry once, without changing its form. Cover the answers at the end until you finish.

WORD + PHRASE BANK

tradeoff / authority / clause / impasse / payment schedule / advice / informed instruction / release / counteroffer / proposal

08

- 01 **Tomas:** The business contact wants payment within thirty days, and the other side floated a figure. The decision-maker also wants confidentiality, but we have no written terms yet.
- 02 **Nadia:** Then treat the discussion as an incomplete ¹ _____. We need the payment trigger, release scope, and confidentiality wording before presenting the package for a decision.
- 03 **Tomas:** I can ask for those details. I cannot approve a settlement, although the business contact seems to expect me to tell the other side that the number works.
- 04 **Nadia:** Make your ² _____ clear. You can gather the terms for the decision-maker without accepting a figure or implying that the remaining provisions are routine.
- 05 **Tomas:** For timing, should I ask whether thirty days runs from agreement in principle, signature, or another event? Each version could give the business a different payment date.
- 06 **Nadia:** Yes. The ³ _____ needs a defined trigger and any proposed installments. Do not turn the client's preferred period into a term the other side has already accepted.
- 07 **Tomas:** The business contact says a quick payment matters more than a long dispute. I can report that preference while keeping the confidentiality concern beside it for review.
- 08 **Nadia:** That frames the ⁴ _____ usefully. Explain the linked conditions and uncertainty, rather than presenting speed as a reason to stop reviewing the rest of the agreement.
- 09 **Tomas:** The suggested release sounds broad, but I have not seen the text. I will ask which claims and entities it covers instead of calling it a standard release.
- 10 **Nadia:** Correct. The ⁵ _____ requires careful review. Standard is not a substitute for identifying who gives up what, under which terms, and with what approval.

The conversation, continued

E Conversations / turns 11-20

Continue with the word bank on page 73.

- 11 **Tomas:** The other side also mentioned confidentiality and non-disparagement in one sentence. I should ask for separate wording because those terms do not describe exactly the same restriction.
- 12 **Nadia:** Yes. Review each ⁶ _____ and its exceptions. We must not assume a proposed restriction can prevent required or protected disclosures merely because the document calls itself confidential.
- 13 **Tomas:** If the decision-maker asks whether confidentiality is guaranteed, I will explain that you need to assess the wording and applicable limits before making any recommendation.
- 14 **Nadia:** Good. Our ⁷ _____ should support an informed choice. Reassurance must not become a promise about legal effect, enforceability, or the other side's future behavior.
- 15 **Tomas:** Suppose the decision-maker authorizes a response with an earlier payment date but a narrower release. I would need the exact approved position before transmitting it.
- 16 **Nadia:** Exactly. Record the ⁸ _____ and any conditions attached to that authority. Do not combine separate suggestions into a new package the client never instructed us to propose.
- 17 **Tomas:** If they accept the payment date but reject the narrower release, I'll report those separately. We may have progress on one term even if the package isn't agreed.
- 18 **Nadia:** Describe the ⁹ _____ precisely. Payment timing might be workable while release or confidentiality remains open, and the next instruction should reflect those distinctions.
- 19 **Tomas:** I'll collect the written terms for the decision-maker. Until we have instructions, I'll make clear that we're gathering information, not accepting.
- 20 **Nadia:** Then we can seek an ¹⁰ _____. Keep the proposal, recommendation, and client decision separate so everyone understands the next step and who may take it.

08

ANSWERS / EXPLANATIONS: PAGE 100

1. proposal | 2. authority | 3. payment schedule | 4. tradeoff | 5. release | 6. clause | 7. advice | 8. counteroffer | 9. impasse | 10. informed instruction

A mediator asks whether the figure is accepted

F Say it

A representative may relay information in a mediation but has no authority to accept an amount. A mediator asks for confirmation while release wording and payment timing remain unresolved.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

proposal / instruction / unresolved / authority

Representative: "I can relay the figure, but acceptance is outside my
¹ _____."

Counsel: "The release and payment terms remain ² _____."

Representative: "We will seek the decision-maker's ³ _____ after explaining those terms."

Counsel: "Until then, describe the figure as a ⁴ _____ rather than an accepted agreement."

ANSWERS / EXPLANATIONS: PAGE 100

1. authority | 2. unresolved | 3. instruction | 4. proposal

Rehearse with a fixed script

1. Check the answers. State the floated figure, missing written terms, and Tomas's information-gathering role without claiming acceptance.
2. Switch roles. Ask for the thirty-day trigger, release scope and confidentiality wording before seeking the authorized client's instruction.
3. Complete the mediation exchange. Keep the amount a proposal while release, payment terms and acceptance authority remain unresolved.

WORKING ALONE

Read both roles, pausing for two seconds when the speaker changes. Repeat with the bank covered, then check any missed expressions.

Negotiating the scope of a document search

E More workplace conversations / 1-10

Narrow a discovery proposal without confusing a search agreement with a production decision.

In a fictional US civil case, opposing counsel request messages from twelve employees over five years. The responding team proposes an initial search covering four employees and eighteen months, subject to counsel's review of the applicable rules and case orders.

PEOPLE / Jules: Responding counsel | Mara: Requesting counsel

Use each bank entry once, without changing its form. Answers follow turn 20.

09

WORD + PHRASE BANK

search terms / phased search / date range / dispute / custodian / Responsiveness

- 01 **Mara:** Your proposal covers four employees. Our request names twelve. Why exclude the other eight?
- 02 **Jules:** I'm proposing a ¹ _____, not a final exclusion. Those four negotiated the agreement and managed the disputed deliveries.
- 03 **Mara:** One of the others approved the pricing changes. Their messages may matter too.
- 04 **Jules:** Which person and which changes? If we can identify that connection, I can take a specific addition back to the team.
- 05 **Mara:** Drew approved the revised pricing in March. The email chain we produced names Drew.
- 06 **Jules:** Please give me the document reference. I'll review adding Drew as a ² _____ for the first phase.
- 07 **Mara:** The eighteen-month period is also narrower than our request.
- 08 **Jules:** It covers negotiation through the last disputed delivery. What issue requires the earlier years?
- 09 **Mara:** We allege that the same pricing representation appeared before this contract.
- 10 **Jules:** Then we should identify the representation and the relevant earlier period. We may need a different ³ _____ for that issue.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 76.

- 11 **Mara:** Could you run our keywords across everything and tell us the hit count?
- 12 **Jules:** We'll assess that proposal. A hit count alone won't tell either of us how much responsive material it retrieves.
- 13 **Mara:** Would a sample help test the terms?
- 14 **Jules:** Yes, if we agree how to select and review it. We can use the sample to refine the ⁴ _____.
- 15 **Mara:** I don't want refinement to become a way to omit unfavorable documents.
- 16 **Jules:** Understood. Let's record the scope, the sampling approach, and unresolved issues. Neither side has agreed that the first phase satisfies the entire request.
- 17 **Mara:** And collection doesn't mean the material is cleared for production.
- 18 **Jules:** Correct. ⁵ _____ and privilege review still follow the applicable protocol.
- 19 **Mara:** I'll send Drew's reference and the earlier representation today. Please circulate a revised proposal afterward.
- 20 **Jules:** I will. If we can't agree on the remaining scope, we'll identify that ⁶ _____ and follow the required process for this case.

09

ANSWERS / EXPLANATIONS: PAGE 101

1. phased search | 2. custodian | 3. date range | 4. search terms | 5. Responsiveness | 6. dispute

A search hit is mistaken for a production instruction

F Say it in a new situation

A review coordinator receives the search results. Counsel has not completed responsiveness or privilege review and has not authorized production.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

review / hit / collection / authorization

09

Coordinator: Should every search ¹ _____ go straight into the production set?

Counsel: No. Keep the results in the ² _____ set under our protocol.

Coordinator: I'll record the search terms and date range in the ³ _____ record.

Counsel: Good. No production until the required review and ⁴ _____ are complete.

ANSWERS / EXPLANATIONS: PAGE 101

1. hit | 2. review | 3. collection | 4. authorization

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.
2. Switch roles. Read it again with the word bank covered.
3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

Preparing a witness to distinguish memory from a document

E More workplace conversations / 1-10

Ask for clarification and state the basis of an answer without guessing.

Counsel prepares an employee witness for a fictional civil deposition. A shipping email is dated 14 June, but the witness does not independently remember the shipment date. Counsel will explain the applicable deposition procedure separately; the language practice concerns truthful, precise answers.

PEOPLE / Asha: Counsel | Robin: Employee witness

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

basis / correction / firsthand knowledge / clarification / exhibit / premise

10

- 01 **Asha:** Let's practice with the shipping email. When did the shipment leave?
- 02 **Robin:** June fourteenth, according to the email. I don't actually remember the date myself.
- 03 **Asha:** That distinction matters. Keep the ¹ _____ of your answer clear.
- 04 **Robin:** Would it sound evasive to say I don't remember?
- 05 **Asha:** Not if that's true. Don't claim a memory you don't have, and don't deny a memory you do have.
- 06 **Robin:** What if the question assumes I approved the shipment? I only prepared the packing list.
- 07 **Asha:** Explain that difference. You can correct the ² _____ before answering what you actually know.
- 08 **Robin:** Could I say, "I prepared the list, but I wasn't the person who approved dispatch"?
- 09 **Asha:** Yes, if that's accurate. Now suppose you don't understand what dispatch means in the question.
- 10 **Robin:** I'd ask whether they mean approval to ship or the truck actually leaving.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 79.

- 11 **Asha:** Good. Request ³ _____ rather than silently choose one meaning.
- 12 **Robin:** And if they show me another email that changes what I remember?
- 13 **Asha:** Take time to read the relevant material. Say what it refreshes and what still isn't within your personal recollection.
- 14 **Robin:** I shouldn't agree with their summary just because the document looks familiar.
- 15 **Asha:** Exactly. Review the ⁴ _____ you're shown, not the document you assume it is.
- 16 **Robin:** What if I realize my earlier answer was wrong?
- 17 **Asha:** Raise the need for a ⁵ _____ promptly. I'll explain the procedure that applies.
- 18 **Robin:** I'm worried about saying something that hurts the company's case.
- 19 **Asha:** Your job is to answer truthfully, not to choose the most helpful version. Separate what you observed from what someone later told you.
- 20 **Robin:** Then I'll keep ⁶ _____ separate from the email and anything I heard afterward.

10

ANSWERS / EXPLANATIONS: PAGE 102

1. basis | 2. premise | 3. clarification | 4. exhibit | 5. correction | 6. firsthand knowledge

Clarifying an ambiguous question

F Say it in a new situation

During another practice exchange, the word approved could mean preparing a document or authorizing shipment. The witness prepared the document but did not authorize shipment.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

role / leave / document / authorizing

Counsel: Did you approve the shipment ¹ _____?

Witness: Could you clarify whether you mean preparing it or ² _____
dispatch?

Counsel: I mean giving permission for the goods to ³ _____.

Witness: No. I prepared the paperwork, but that decision was outside my
⁴ _____.

ANSWERS / EXPLANATIONS: PAGE 102

1. document | 2. authorizing | 3. leave | 4. role

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.
2. Switch roles. Read it again with the word bank covered.
3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

Explaining an invoice that exceeds the estimate

E More workplace conversations / 1-10

Handle a billing question by separating fees, expenses, estimates, and agreed scope.

A client questions an invoice for a contract matter: \$7,200 in professional fees plus \$300 in disbursements. The initial fee estimate was \$6,500. The engagement terms and the effect of additional negotiation rounds must be reviewed before counsel responds on the disputed amount.

PEOPLE / Marin: Client representative | Leo: Matter partner

Use each bank entry once, without changing its form. Answers follow turn 20.

WORD + PHRASE BANK

itemized / budget / cadence / disbursements / scope / fee cap

11

- 01 **Marin:** Your estimate was sixty-five hundred. The invoice is seventy-five hundred. What changed?
- 02 **Leo:** The invoice lists seventy-two hundred in fees and three hundred in
¹ _____. I'll walk through both with you.
- 03 **Marin:** I understood the estimate as the maximum we would pay.
- 04 **Leo:** Then we need to review the engagement wording together. I won't assume we understood
² _____ and estimate in the same way.
- 05 **Marin:** The additional negotiation rounds may explain more work, but nobody explained the likely cost to me.
- 06 **Leo:** That's a fair question. I'll check the scope updates and who received them before I tell you what was communicated.
- 07 **Marin:** Please don't just send me a total number of hours. I need to see what those hours covered.
- 08 **Leo:** I'll provide an ³ _____ account, with the work described clearly and confidential details handled appropriately.
- 09 **Marin:** What are the three hundred dollars of expenses?
- 10 **Leo:** I'll verify the underlying entries and receipts. The label on the invoice isn't enough to answer which costs were incurred and whether they were agreed.

The conversation, continued

E More workplace conversations / 11-20

Continue with the word bank on page 82.

- 11 **Marin:** Can we pay the undisputed portion while you review the rest?
- 12 **Leo:** Let me confirm the appropriate arrangement with billing and the engagement terms. I'll give you a written response rather than improvise one here.
- 13 **Marin:** We also have another round of negotiations scheduled next week.
- 14 **Leo:** Before that work proceeds, let's confirm the ⁴ _____ and the spending instructions with the authorized client contact.
- 15 **Marin:** I can request approval, but our finance director has to authorize additional spending.
- 16 **Leo:** I'll send a revised ⁵ _____ showing assumptions and what would trigger another discussion.
- 17 **Marin:** And the disputed invoice?
- 18 **Leo:** I'll send the breakdown and my response by Thursday. I'll also identify any agreed adjustment separately, so the record is clear.
- 19 **Marin:** That would help. I want predictable updates, not a surprise at the end.
- 20 **Leo:** Understood. Let's agree a reporting ⁶ _____ for the next phase and a clear contact for questions.

11

ANSWERS / EXPLANATIONS: PAGE 103

1. disbursements | 2. fee cap | 3. itemized | 4. scope | 5. budget | 6. cadence

A new task arrives outside the reviewed scope

F Say it in a new situation

The client asks the contract team to handle a separate employment issue. The existing engagement and fee estimate cover only the contract matter.

Complete the four gaps. Use each bank entry once.

WORD + PHRASE BANK

engagement / approval / only / work

Client: Can you include the employment issue under the existing
1 _____?

Counsel: We need to review the additional 2 _____ before confirming that.

Client: Please provide a separate estimate and identify the required
3 _____.

Counsel: I will. The current estimate covers the contract matter
4 _____.

ANSWERS / EXPLANATIONS: PAGE 103

1. engagement | 2. work | 3. approval | 4. only

Read, switch, repeat

1. Check the four answers and read the complete exchange aloud.
2. Switch roles. Read it again with the word bank covered.
3. Return to the extended conversation. Read turns 1-10, then switch roles for turns 11-20. Use the corrected expressions.

SOLO PRACTICE

Read both roles. Pause briefly at each change of speaker. Repeat any line that needed an answer check.

01 Briefing and language checks

Legal English Mindset: Facts, Issues, Rules, Risk

A Briefing checks / page 4

1. What does the available email report?

A. Delivery on 18 May

The email supplies a reported delivery date, not the complete contractual terms or a legal ruling.

2. Where does the 15 May date currently come from?

D. The client's account

The briefing attributes the date to the client; the agreement and amendments have not been reviewed.

3. Which conclusion remains unapproved?

B. Whether the supplier breached an applicable obligation

The case has not established the governing obligation or approved a breach or remedy conclusion.

D Language checks / page 9

1. Which sentence accurately describes the available record?

D. The client reports a 15 May promise; the email records delivery on 18 May.

The correct statement keeps the two sources separate and does not invent reviewed terms or a ruling.

2. Which word best signals an initial analysis?

C. preliminary

Preliminary indicates work subject to further review; the other words imply different procedural or final states.

3. Which request targets the missing contractual basis?

C. Please obtain the signed agreement and relevant amendments.

The agreement and amendments can identify the obligation; confident wording cannot supply missing terms.

4. Which distinction matters before recommending a remedy?

D. Claimed loss versus legally recoverable damages

A client's stated loss does not establish recoverability or amount. The alternative shortcuts also substitute a label, reported term or date interval for legal analysis.

01 Conversation answers

Legal English Mindset: Facts, Issues, Rules, Risk

E Dialogue gaps

Pages 10-11

1. conclusion. Turn 2. A conclusion about breach requires analysis of the applicable obligation; the two dates alone do not establish it.

2. attribution. Turn 4. Attribution identifies who supplied a statement, preventing a reported promise from becoming an independently established contract term.

3. allegation. Turn 6. An allegation is an asserted position whose truth or legal effect is not yet established by the team.

4. amendments. Turn 8. Amendments may change contractual terms; reviewing only an initial agreement could miss the obligation actually applicable to the shipment.

5. factual record. Turn 10. The factual record assembles information with its sources and limitations; it supports later analysis without erasing differences in evidential support.

6. Causation. Turn 12. Causation concerns the legally relevant connection between the conduct and the loss; an asserted lost sale does not automatically establish that connection.

7. qualification. Turn 14. A qualification states a material limit, here that the terms and consequences remain subject to review.

8. obligation. Turn 16. The obligation is the duty against which conduct is assessed; requesting its source tests the analysis rather than the colleague's competence.

9. preliminary. Turn 18. Preliminary marks an initial analysis that remains open to further documents and review, without concealing the client's concern.

10. analysis. Turn 20. Analysis connects the established facts and applicable rules before reaching a conclusion; it is more than putting a legal label on a chronology.

F Transfer conversation

Page 12

1. reports

Paralegal: "The client reports that service ended early."

Reports attributes the account without presenting an unreviewed legal conclusion as established.

2. clause

Counsel: "Obtain the governing termination clause and any amendments."

The applicable contractual wording is needed before assessing the legal effect of the termination.

3. preliminary

Paralegal: "Until that review, the validity assessment remains preliminary."

The relevant terms remain unreviewed, so the assessment cannot accurately be described as final.

4. summary

Counsel: "Keep that qualification attached to the summary circulated internally."

A shortened internal account must retain material limits rather than appear more certain than the underlying analysis.

02 Briefing and language checks

Client Intake, Scope, Conflicts, and Confidentiality

A Briefing checks / page 13

1. What remains incomplete?

A. The conflicts review

The briefing says conflicts review is unfinished and no advice or acceptance has been authorized.

2. What may Leo accurately describe?

D. The intake process and information needed for review

Leo coordinates intake and lacks authorization to provide the requested substantive advice or confirm acceptance.

3. How should the mentioned deadline be treated?

D. As an unverified urgent point for the assigned reviewer

The possible deadline needs prompt qualified review; intake status neither verifies it nor changes it.

D Language checks / page 18

1. Which acknowledgment avoids implying substantive advice?

C. We received your inquiry; conflicts review and any acceptance decision remain pending.

The correct response confirms receipt and current process status without authorizing action or making a blanket confidentiality claim.

2. Which question supports the stated conflict process?

A. What are the names of the opposing party and related entities?

Party and related-entity identifiers support the stated review. A trading name, urgency or prior contact does not complete that review or authorize acceptance.

3. Which claim exceeds Leo's role?

A. The proposed demand is legally safe to send today.

A substantive legal recommendation is outside the coordinator's stated authority and has not been approved.

4. What does confidentiality not automatically establish?

C. That every communication is protected by evidentiary privilege

Confidentiality duties and privilege protections have different legal bases and conditions.

02 Conversation answers

Client Intake, Scope, Conflicts, and Confidentiality

E Dialogue gaps

Pages 19-20

1. inquiry. Turn 2. An inquiry is a request for assistance; acknowledging it does not itself authorize advice or establish the acceptance decision.

2. acceptance. Turn 4. Acceptance concerns taking on the specified work; receipt of an email is not a sound basis for the coordinator to confirm that decision.

3. related entities. Turn 6. Related entities may be relevant to the conflict review; using only a trading name can leave the actual parties unclear.

4. intake. Turn 8. Intake is the controlled process for receiving and assessing an initial matter; it does not require uncontrolled collection or circulation of every document.

5. urgent inquiry. Turn 10. An urgent inquiry needs prompt attention, but urgency does not verify a deadline or authorize the coordinator to advise.

6. confidentiality. Turn 12. Confidentiality concerns appropriate use and disclosure of information; prospective-client information may require protection even before a final acceptance decision.

7. privilege. Turn 14. Privilege has legal conditions distinct from general confidentiality; the coordinator cannot guarantee that every message or onward disclosure is protected.

8. scope. Turn 16. Scope identifies which matter or services are being considered; mentioning another issue does not automatically include it in an engagement.

9. receipt. Turn 18. Receipt establishes that material arrived; it must not be presented as approval of the demand or acceptance of representation.

10. next step. Turn 20. The next step is the reviewed process action to communicate, rather than an invented promise about advice, acceptance, or the dispute's outcome.

F Transfer conversation

Page 21

1. inquiry

Assistant: "We received your new inquiry about the supplier."

A prior engagement does not make every new request an accepted matter without the appropriate assessment.

2. scope

Client: "Does the earlier engagement establish the new scope?"

Scope identifies the work covered; the new supplier dispute is distinct from the earlier assignment.

3. pending

Assistant: "The new conflicts review and acceptance decision remain pending."

The reviews are incomplete, so acceptance cannot accurately be reported as confirmed.

4. reviewer

Client: "Please route the question to the authorized reviewer."

The assistant can coordinate communication while the authorized reviewer makes the relevant assessment.

03 Briefing and language checks

Litigation Lifecycle: Pleadings, Motions, Deadlines, Strategy

03

A Briefing checks / page 22

1. Where does 15 October currently appear?

C. A document labeled proposed schedule

The later date is in a proposal, not a verified order or extension.

2. What has not been confirmed?

C. The controlling deadline and any extension

The case supplies conflicting sources but no verified controlling date or extension.

3. Who must verify the deadline?

C. Karim, supervising counsel

The briefing assigns verification to supervising counsel, using the relevant authoritative sources.

D Language checks / page 27

1. Which update preserves the document status?

B. The later date appears in a proposed schedule; counsel has not confirmed it controls.

The correct response distinguishes a proposed date from a verified controlling deadline.

2. Which question narrows the procedural task?

D. Does the date govern filing, service, or the hearing?

Identifying the procedural act directs the source check. Convenience, proposed status or later document timing does not establish the controlling requirement.

3. What does an unconfirmed extension request establish?

D. A request has been made, not that more time is authorized.

Requesting time and obtaining an effective extension are different procedural states.

4. Which record is most useful after counsel verifies the instruction?

C. The date, required act, authoritative source, and confirmation owner

A sourced, action-specific instruction makes the verified result usable without hiding its basis.

03 Conversation answers

Litigation Lifecycle: Pleadings, Motions, Deadlines, Strategy

03

E Dialogue gaps

Pages 28-29

1. deadline. Turn 2. The deadline is the legally applicable time requirement; neither an internal email nor an unverified proposal alone establishes it.

2. proposed. Turn 4. Proposed identifies draft or requested terms, not a confirmed court direction; removing the modifier would overstate the document's status.

3. Filing. Turn 6. Filing is submission through the court process; it is not necessarily the same act or deadline as formal delivery to another party.

4. procedural posture. Turn 8. Procedural posture is the current stage and status of the case, which can affect how a deadline question should be analyzed.

5. authority. Turn 10. Authority supplies the controlling legal or procedural basis; a document's polished format or convenient date does not provide it.

6. extension. Turn 12. An extension is effective additional time under the applicable process; a request or proposal alone does not confirm that status.

7. controlling source. Turn 14. The controlling source is the authority whose legal effect governs the task; identifying it is the unresolved review question.

8. audit trail. Turn 16. An audit trail retains how the discrepancy was resolved, allowing the team to understand the basis of the final calendar instruction.

9. case management. Turn 18. Case management coordinates the work and dependencies around litigation; it supports, but does not replace, counsel's legal verification.

10. handoff. Turn 20. A handoff transfers the sources, unresolved question, and assigned responsibility, preventing an administrative calendar choice from becoming unsupported legal advice.

F Transfer conversation

Page 30

1. request

Assistant: "The record shows a request for postponement, not a granted change."

The team has evidence of asking, but no evidence that the court approved the postponement.

2. verified

Counsel: "Keep the current reminder until the controlling status is verified."

The operational calendar should not assume a requested change has taken effect.

3. status

Assistant: "I will identify the source and retain its procedural status."

Describing the document as a request preserves the distinction between proposed and granted relief.

4. reviewer

Counsel: "Then route any conflict back to the assigned reviewer rather than choosing a convenient date."

An authorized reviewer must resolve the legal effect; administrative convenience does not establish it.

04 Briefing and language checks

Discovery, ESI, Privilege Review, and Depositions

04

A Briefing checks / page 31

1. Where is the chain now?

D. In the review set

The briefing places the chain in review and expressly says it is not in the production set.

2. Who should decide the uncertain privilege issue under this workflow?

C. Owen, reviewing counsel

The assigned workflow routes uncertain privilege questions to reviewing counsel rather than treating a name as decisive.

3. What does tomorrow's draft-list deadline authorize?

C. Preparing an accurate status list, not releasing the chain

A planning deadline does not change the item's unapproved release status or settle its legal classification.

D Language checks / page 36

1. Which status statement is supported?

D. The chain is flagged for counsel review and has not been produced.

The supported statement reports the actual workflow stage without deciding privilege or inventing a release.

2. Which record detail is an example of metadata?

C. The file's recorded creation time

A creation timestamp is a file attribute. The alternatives describe legal analysis, document content or testimony, not the requested file-attribute example.

3. Which instruction preserves the original?

D. Apply only approved redactions to the disclosure copy.

A controlled disclosure copy can be redacted while the original is preserved under the applicable process.

4. Which phrase properly limits a review flag?

A. A potential issue requiring counsel's assessment

A flag identifies uncertainty and its next reviewer, not the legal outcome.

04 Conversation answers

Discovery, ESI, Privilege Review, and Depositions

E Dialogue gaps

Pages 37-38

- 1. privilege review.** Turn 2. Privilege review is the assessment stage; it does not mean the protection has already been established.
- 2. status.** Turn 4. Status identifies the document's actual workflow stage, preventing collection or review from being mistaken for completed disclosure.
- 3. email thread.** Turn 6. The complete email thread supplies context for the different messages; a single isolated line may not support accurate classification.
- 4. Responsiveness.** Turn 8. Responsiveness concerns the scope of a request, not whether a legal protection may apply; changing that label would hide a separate question.
- 5. redaction.** Turn 10. A redaction masks approved content in a disclosure copy; it is not permission to change the preserved original or redact without authorization.
- 6. metadata.** Turn 12. Metadata contains file attributes that may support review context; retaining only visible text can omit important information.
- 7. Bates number.** Turn 14. A Bates number identifies pages in a legal document sequence; inventing one could misleadingly imply an assigned production reference.
- 8. privilege log.** Turn 16. A privilege log describes withheld material according to governing requirements; its contents need review and should not reveal the claimed protected substance.
- 9. clawback.** Turn 18. A clawback mechanism may address inadvertent disclosure under applicable arrangements, but it does not justify bypassing the required review.
- 10. handoff.** Turn 20. A handoff transfers the item, context, unresolved question, and responsibility; those details allow counsel to decide without guessing the workflow history.

F Transfer conversation

Page 39

1. unreviewed

Reviewer: "The attachment remains unreviewed, even though the parent email has been checked."

Review of one item does not establish that a linked attachment has received the same assessment.

2. family

Counsel: "Keep the document family visible so the relationship is not lost."

The family connects the parent email with its attachment and preserves useful review context.

3. release

Reviewer: "I will flag the pending question before any exhibit release."

The case permits internal preparation, not disclosure of unreviewed material as an exhibit.

4. history

Counsel: "Record my decision in the review history before updating the preparation set."

A recorded decision makes the authorization and sequence traceable rather than relying on an informal assumption.

04

05 Briefing and language checks

Legal Research, Authority, and Memo Writing

A Briefing checks / page 40

1. What is the known source of the decision?

D. An appellate court in another jurisdiction

The briefing locates the decision elsewhere; its controlling effect has not been established.

2. Which factual difference is already known?

B. Written notice in the decision versus a telephone call here

The notice method differs and may affect whether the decision's reasoning can be applied by analogy.

3. What must happen before the recommendation is approved?

B. The requested authority and factual checks

Counsel requested checks of forum, text, treatment, and differences because the preliminary research does not settle the issue.

D Language checks / page 45

1. Which wording avoids overstating the decision?

B. It may support the argument by analogy, subject to further checks.

The qualified wording preserves both the potential relevance and the incomplete authority checks.

2. Which phrase names later courts' handling of a case?

B. subsequent treatment

Subsequent treatment concerns later legal attention to a decision, including limits or changes to its force.

3. Which sentence preserves the known factual difference?

A. The cited case used written notice, whereas our client called.

Whereas explicitly contrasts the two known methods without inventing a legal ruling about their significance.

4. Which action best supports a precise source reference?

D. Add the page or paragraph supporting the proposition.

A pinpoint citation lets the reviewer inspect the actual supporting passage. A broad citation or a summary does not identify that precise basis.

05 Conversation answers

Legal Research, Authority, and Memo Writing

E Dialogue gaps

Pages 46-47

1. persuasive authority. Turn 2. Persuasive authority may influence the analysis without binding the relevant court; the outstanding forum check prevents a stronger conclusion.

2. material distinction. Turn 4. A material distinction is a difference that could affect the reasoning; the notice method cannot simply be treated as identical.

3. statutory text. Turn 6. Statutory text supplies the enacted wording; commentary can assist research but does not replace checking the provision itself.

4. holding. Turn 8. The holding resolves an issue necessary to the court's decision; a favorable observation may carry a different analytical role.

5. procedural posture. Turn 10. Procedural posture identifies the stage and context of the decision, which can limit what the court actually decided.

6. distinguished. Turn 12. A distinguished case is treated as different in a legally relevant way; that does not itself mean its precedent was overruled.

7. subsequent treatment. Turn 14. Subsequent treatment reports how later authorities handled a decision and helps assess whether reliance remains justified.

8. counterargument. Turn 16. A counterargument identifies a reason against the proposed position; including the known notice-method objection prevents a one-sided recommendation.

9. pinpoint citation. Turn 18. A pinpoint citation identifies the exact supporting location, enabling the reviewer to verify the claim instead of searching an entire decision.

10. recommendation. Turn 20. A recommendation should reflect the support and unresolved limits of the analysis; it is not a guarantee that the argument will succeed.

F Transfer conversation

Page 48

1. secondary

Assistant: "The article is a secondary source, not the governing regulation."

Commentary explains a rule but does not itself establish the enacted or issued requirements.

2. text

Counsel: "Retrieve the current text and relevant definitions."

The wording and definitions are needed to assess the actual scope rather than rely on a summary.

3. unverified

Assistant: "I will flag the claimed exception as unverified until that review."

The trade article alone does not establish whether the exception applies to the present facts.

4. memorandum

Counsel: "Keep the source references attached to the research memorandum."

The memorandum should allow a reviewer to trace and check the analysis against its underlying sources.

05

06 Briefing and language checks

Contracts, Redlines, and Negotiation

A Briefing checks / page 49

1. What timing does operations need?

A. Fifteen business days after complete specifications are received

The briefing specifies both a business-day period and receipt of complete specifications as its proposed starting event.

2. What has the customer accepted?

C. No change yet

The proposed changes are still being prepared and the customer has not accepted them.

3. What falls outside the participants' current approval?

C. Conceding remedies or liability limits

Their authority covers preparation and review, not the stated concessions on remedies or liability.

D Language checks / page 54

1. Which proposal captures operations' stated need?

B. Fifteen business days after receipt of complete specifications

The correct proposal preserves both the required duration and the new triggering event.

2. Which sentence accurately describes authority?

B. We can propose timing changes, but no remedy concession is approved.

The briefing permits preparation of a timing proposal while expressly withholding authority for remedy concessions.

3. Which phrase identifies competing document priority?

A. order of precedence

An order of precedence addresses conflicts between documents. Governing law, notices and liability allocation address other contractual questions.

4. Which status statement is appropriate before customer agreement?

C. The redline is a proposal subject to approval and agreement.

A draft redline records a proposed change, not acceptance or completion of signing.

06 Conversation answers

Contracts, Redlines, and Negotiation

E Dialogue gaps

Pages 55-56

- 1. redline.** Turn 2. A redline shows proposed wording changes, here to both the period and its starting event.
- 2. trigger event.** Turn 4. The proposed trigger is actual receipt of complete specifications; receipt of an order without those specifications does not start that proposed period.
- 3. defined term.** Turn 6. A defined term assigns a specific meaning, allowing the schedule and clause to use one completion standard.
- 4. business day.** Turn 8. Business day needs a relevant definition; the parties cannot assume that different working calendars are identical.
- 5. concession.** Turn 10. A concession gives negotiating ground; changing the cure period could affect remedies beyond the authorized proposal.
- 6. fallback position.** Turn 12. A fallback position is a negotiating alternative that needs authorization, not an improvised concession.
- 7. order of precedence.** Turn 14. The order of precedence addresses conflicting documents; the inconsistent purchase order template still needs review.
- 8. propose.** Turn 16. Propose identifies suggested wording, not completed approval or customer agreement to a change.
- 9. execution copy.** Turn 18. An execution copy is prepared for signing after review; clean appearance alone does not establish approval.
- 10. scope.** Turn 20. Scope defines what the change covers, separating authorized timing revisions from unapproved remedy concessions.

F Transfer conversation

Page 57

1. proposal

Commercial lead: "Our proposal changes the renewal date only."

Proposal identifies negotiating status and limits the requested change to the authorized date issue.

2. unresolved

Counsel: "Keep the separate notice-period question unresolved in the review note."

The notice period remains under review and should not appear settled merely because a date is proposed.

3. authorized

Commercial lead: "No change to termination rights is currently authorized."

The facts do not grant authority to concede termination rights as part of the date discussion.

4. copy

Counsel: "Confirm the accepted wording before preparing the execution copy."

The signing version should reflect approved and accepted wording rather than an unresolved negotiation draft.

07 Briefing and language checks

Corporate, Compliance, Regulatory, and Investigation Language

A Briefing checks / page 58

1. What is the employee's knowledge source?

C. A colleague's account of a meeting the employee did not attend

The employee relays another person's account, so the report must preserve that source limitation.

2. What evidence review is already complete?

D. Neither transaction records nor messages have been reviewed

The briefing expressly says those records remain unreviewed and no finding is approved.

3. What should Ben communicate to the authorized team?

B. A reported allegation and the current limits of the inquiry

The team needs an accurate status update that does not convert an untested account into an established finding.

D Language checks / page 63

1. Which sentence preserves the source chain?

D. The employee says a colleague described the alleged offer.

The employee did not attend, so the report must attribute the information to the colleague's account.

2. What does unsubstantiated necessarily mean here?

C. The allegation has not been established under the relevant process.

Unsubstantiated describes the lack of an established finding. It does not itself prove falsity, deliberate fabrication or the absence of a useful investigation lead.

3. Which description avoids treating an interim measure as proof?

B. The temporary step is precautionary; no finding is approved.

The correct sentence distinguishes a provisional protective action from an evidential or legal conclusion.

4. Which communication requires additional authorized review?

D. An external disclosure decision

The facts reserve disclosure decisions for approval; internal information gathering does not itself authorize external publication.

07 Conversation answers

Corporate, Compliance, Regulatory, and Investigation Language

E Dialogue gaps

Pages 64-65

1. secondhand account. Turn 2. A secondhand account comes through another person's description, not the employee's direct observation of the event.

2. unsubstantiated. Turn 4. Unsubstantiated means not established under the relevant process, not that the report is necessarily false.

3. investigation finding. Turn 6. A finding follows the designated assessment process; a manager's desire for certainty cannot replace it.

4. corroborating evidence. Turn 8. Corroborating evidence independently supports an account, allowing the inquiry to test more than the repeated allegation.

5. exculpatory information. Turn 10. Exculpatory information tends against the allegation; preserving it supports a balanced rather than predetermined inquiry.

6. access restriction. Turn 12. An access restriction limits distribution; an informal request does not authorize circulation beyond the approved recipients.

7. non-retaliation. Turn 14. Non-retaliation concerns improper adverse treatment for reporting or participation, not a promise of absolute secrecy.

8. interim measure. Turn 16. An interim measure is temporary during review; its existence does not establish that misconduct occurred.

9. reporting obligation. Turn 18. A reporting obligation requires assessment under the applicable framework; the allegation alone does not settle notification duties.

10. investigation mandate. Turn 20. The mandate defines the inquiry's authorized scope; the bounded update supports it without announcing unsupported conclusions.

F Transfer conversation

Page 66

1. intent

Reviewer: "Missing records do not establish intent."

Missing records do not by themselves prove that a person deliberately acted improperly.

2. deficiency

Counsel: "Describe the possible control deficiency and required checks."

A potential process weakness can be reported without converting it into a concluded misconduct finding.

3. review

Reviewer: "The cause and any applicable exception remain under review."

The facts expressly leave those questions unresolved, so the update must not present them as settled.

4. finding

Counsel: "Separate the temporary step from the final finding."

A provisional action can manage risk while the evidence assessment and conclusion remain incomplete.

08 Briefing and language checks

Advocacy, Settlement, Ethics, and Professional Judgment

A Briefing checks / page 67

1. Which priority belongs to the business contact?

B. Payment within thirty days

The briefing identifies payment timing as that contact's priority, separate from the decision-maker's confidentiality concern.

2. What can Tomas currently do?

D. Collect information for the decision-maker

Tomas lacks settlement approval authority, so information gathering must not be represented as acceptance.

3. Which terms are approved?

A. None of the listed settlement terms

The briefing expressly says all listed terms and the authority range remain unapproved.

D Language checks / page 72

1. Which response fits Tomas's authority?

D. I can collect the terms for the decision-maker but cannot approve them.

Tomas's role permits information gathering, not acceptance or waiver of the required review.

2. Which question identifies the missing start of the payment period?

D. What event starts the thirty-day payment period?

The triggering event establishes when the period begins. Currency, release scope and authority also matter, but do not identify the missing time reference.

3. Which statement correctly separates two restrictions?

B. Confidentiality concerns disclosure; non-disparagement concerns specified adverse statements.

The restrictions concern different conduct, and their scope and enforceability depend on wording and applicable law.

4. Which description fits the current proposal?

B. Incomplete terms awaiting review and client instruction

A floated figure and unapproved terms do not establish a complete, authorized settlement.

08 Conversation answers

Advocacy, Settlement, Ethics, and Professional Judgment

E Dialogue gaps

Pages 73-74

1. proposal. Turn 2. Proposal describes terms still being explored; a floated figure does not establish a complete approved settlement.

2. authority. Turn 4. Authority defines permitted actions; collecting information does not permit Tomas to accept terms for the client.

3. payment schedule. Turn 6. The payment schedule specifies timing and structure, requiring a starting event as well as a duration.

4. tradeoff. Turn 8. A tradeoff compares benefits and conditions, helping the client decide without choosing on the client's behalf.

5. release. Turn 10. A release relinquishes specified claims or rights; its actual scope cannot be inferred from a reassuring label.

6. clause. Turn 12. A clause supplies contractual wording; labels alone do not establish a restriction's reach or exceptions.

7. advice. Turn 14. Advice explains implications and limits for the client's decision; it cannot promise an unassessed confidentiality result.

8. counteroffer. Turn 16. A counteroffer proposes changed terms; transmitting it requires clear authority for those terms and conditions.

9. impasse. Turn 18. An impasse is stalled negotiation; identifying disputed terms is more precise than declaring every issue irretrievably failed.

10. informed instruction. Turn 20. An informed instruction follows adequate explanation, preserving the authorized client's decision rather than presuming it.

F Transfer conversation

Page 75

1. authority

Representative: "I can relay the figure, but acceptance is outside my authority."

The representative's permitted role is communication, not a decision to settle.

2. unresolved

Counsel: "The release and payment terms remain unresolved."

The facts leave both terms open, so the figure cannot be described as the complete approved package.

3. instruction

Representative: "We will seek the decision-maker's instruction after explaining those terms."

The authorized client must give a direction informed by the unresolved conditions, not merely the amount.

4. proposal

Counsel: "Until then, describe the figure as a proposal rather than an accepted agreement."

Proposal preserves the tentative status and avoids falsely representing that settlement approval has occurred.

08

09 Conversation answers

Negotiating the scope of a document search

E Extended conversation

Pages 76-77

1. phased search. Turn 2. Phased search divides collection or review into agreed stages instead of treating the initial stage as necessarily complete.

2. custodian. Turn 6. Custodian means a person whose potentially relevant records are identified for preservation or collection.

3. date range. Turn 10. Date range defines the time span of records included in a particular search.

4. search terms. Turn 14. Search terms are words or expressions used to locate potentially relevant material, not final responsiveness decisions.

5. Responsiveness. Turn 18. Responsiveness concerns whether material falls within a document request; privilege is a separate review question.

6. dispute. Turn 20. Dispute means the specific unresolved disagreement, not an agreement to withhold records unilaterally.

F Transfer exchange

Page 78

1. hit

Coordinator: Should every search hit go straight into the production set?

Hit means material matched a search expression, not that it is cleared for release.

2. review

Counsel: No. Keep the results in the review set under our protocol.

Review set contains material awaiting the required legal and procedural assessment.

3. collection

Coordinator: I'll record the search terms and date range in the collection record.

Collection record preserves how the material was gathered and what scope was used.

4. authorization

Counsel: Good. No production until the required review and authorization are complete.

Authorization is the explicit approval to release the reviewed material through the proper process.

10 Conversation answers

Preparing a witness to distinguish memory from a document

E Extended conversation

Pages 79-80

1. basis. Turn 3. Basis identifies the source supporting an answer, such as personal memory or a document.

2. premise. Turn 7. Premise is an assumption contained in a question, here that the witness approved the shipment.

3. clarification. Turn 11. Clarification resolves an unclear meaning so the witness does not answer a different question.

4. exhibit. Turn 15. Exhibit is the document or other material identified for use in the proceeding.

5. correction. Turn 17. Correction makes an inaccurate answer accurate; it is different from changing truthful evidence to help a side.

6. firsthand knowledge. Turn 20. Firsthand knowledge comes from the witness's own observation or experience, rather than another person's account.

F Transfer exchange

Page 81

1. document

Counsel: Did you approve the shipment document?

Document is the item whose preparation may be confused with shipment authorization.

2. authorizing

Witness: Could you clarify whether you mean preparing it or authorizing dispatch?

Authorizing means giving permission for dispatch, a different act from preparing paperwork.

3. leave

Counsel: I mean giving permission for the goods to leave.

Leave identifies the physical dispatch decision rather than document preparation.

4. role

Witness: No. I prepared the paperwork, but that decision was outside my role.

Role defines the witness's responsibilities and distinguishes them from the decision-maker's authority.

11 Conversation answers

Explaining an invoice that exceeds the estimate

E Extended conversation

Pages 82-83

1. disbursements. Turn 2. Disbursements are expenses paid or incurred in connection with the matter, separate from professional fees.

2. fee cap. Turn 4. Fee cap means an agreed upper limit on fees, which is not automatically created by every estimate.

3. itemized. Turn 8. Itemized means broken down into individual entries so the work and charges can be examined.

4. scope. Turn 14. Scope defines the work covered by the engagement and the proposed next phase.

5. budget. Turn 16. Budget is the planned spending amount for the defined work, subject to the agreed terms and approval.

6. cadence. Turn 20. Cadence means the regular frequency of updates, here about work and spending.

F Transfer exchange

Page 84

1. engagement

Client: Can you include the employment issue under the existing engagement?

Engagement is the agreed professional relationship and scope, which may not cover the new issue.

2. work

Counsel: We need to review the additional work before confirming that.

Work identifies the new services requested, rather than treating them as automatically included.

3. approval

Client: Please provide a separate estimate and identify the required approval.

Approval refers to the authorization needed before the additional work is accepted or begun.

4. only

Counsel: I will. The current estimate covers the contract matter only.

Only preserves the stated limit and prevents the original estimate from expanding silently.

11

Find the move you need

Use these as precise language models. Replace details only when you know the actual facts, authority, and agreed conditions.

01 Legal English Mindset: Facts, Issues, Rules, Risk

Attribute a report: The client reports that 15 May was the promised date.

Identify missing material: We need the signed agreement and any relevant amendments.

Close with a task: I will assemble the documents and identify each source in the chronology.

Full phrase set: pages 7-8 | Dialogue: pages 10-11

02 Client Intake, Scope, Conflicts, and Confidentiality

Acknowledge receipt: I have received your inquiry and noted the urgency.

Request identifiers: Please provide the parties' names and relevant related entities through the approved channel.

Close with a status: The next message will confirm the review status, not a guaranteed outcome.

Full phrase set: pages 16-17 | Dialogue: pages 19-20

03 Litigation Lifecycle: Pleadings, Motions, Deadlines, Strategy

Flag the discrepancy: The task list contains two dates from different sources.

Request authority: Please verify the controlling order and applicable rule.

Close the escalation: I will keep the discrepancy visible until the verified instruction is recorded.

Full phrase set: pages 25-26 | Dialogue: pages 28-29

04 Discovery, ESI, Privilege Review, and Depositions

Locate the item: The chain remains in the review set.

Preserve context: Please review the full thread and linked attachments.

Close the loop: I will update the status after counsel records the decision.

Full phrase set: pages 34-35 | Dialogue: pages 37-38

Keep the conversation productive

Use these as precise language models. Replace details only when you know the actual facts, authority, and agreed conditions.

05 Legal Research, Authority, and Memo Writing

Qualify authority: This decision is potentially persuasive; controlling effect is not established.

State a difference: The decision involved written notice; our facts involve a telephone call.

Close with limits: The memorandum will state both the supporting reasoning and the unresolved checks.

Full phrase set: pages 43-44 | Dialogue: pages 46-47

06 Contracts, Redlines, and Negotiation

State the requirement: Operations needs fifteen business days after receipt of complete specifications.

Limit the proposal: This markup addresses delivery timing, not the liability allocation.

Close with a redline: I will circulate the marked clause and list the linked provisions for review.

Full phrase set: pages 52-53 | Dialogue: pages 55-56

07 Corporate, Compliance, Regulatory, and Investigation Language

Attribute the concern: The employee reports what a colleague described.

Identify missing evidence: The relevant records and messages remain unreviewed.

Close with a review task: We will seek the identified records under the approved investigation process.

Full phrase set: pages 61-62 | Dialogue: pages 64-65

08 Advocacy, Settlement, Ethics, and Professional Judgment

State the status: The other side floated a figure; written terms are not available.

Limit the response: I can gather information, but I cannot approve the settlement.

Close with next steps: We will present the options and seek a clear instruction before responding.

Full phrase set: pages 70-71 | Dialogue: pages 73-74

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

acceptance confirm acceptance of the matter	15
access restriction apply an authorized access restriction	60
adverse party identify the adverse party	14
advocacy present measured advocacy	68
affiliate identify corporate affiliates	14
agreement review the signed agreement	6
allegation attribute an allegation	5
alleged misconduct describe alleged misconduct neutrally	59
amendment mechanism follow the amendment mechanism	51
analogous identify analogous facts	42
answer prepare an answer for review	23
application explain the application	5
assumption state the working assumption	5
attachment family keep an attachment family linked	33
authority evaluate the cited authority	41
authorization confirm advice authorization	15
Bates number cite the Bates number	33
binding precedent identify binding precedent	41
breach assess an alleged breach	6
brief review the supporting brief	23
business day clarify the business-day definition	50
calendar entry reconcile calendar entries	24
carve-out define the carve-out narrowly	51
case management update the case-management record	24

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

caucus request an authorized caucus	69
causation analyze causation	6
chronology prepare a sourced chronology	5
citation verify the citation	42
clawback review the applicable clawback procedure	33
collection document the collection process	32
complaint identify the filed complaint	23
compliance assess a compliance concern	59
conclusion qualify the conclusion	5
condition precedent review the proposed condition precedent	50
confidentiality protect confidential information	14
confidentiality clause review confidentiality exceptions	68
conflict check complete a conflict check	14
conflict of interest assess a potential conflict	14
continuance confirm a granted continuance	24
control deficiency document a control deficiency	60
corroborating record seek a corroborating record	59
corroboration seek independent corroboration	5
counterargument address the strongest counterargument	42
counteroffer prepare an authorized counteroffer	68
covenant assess the covenant wording	50
cure period negotiate the cure period	51
custodian identify a document custodian	32
damages distinguish damages from a claimed loss	6

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

deadline verify the controlling deadline	24
deduplication document the deduplication method	33
default avoid an unsupported default conclusion	24
default provision assess the default provision	69
defined term use the defined term consistently	50
deposition prepare for a deposition	33
dicta distinguish dicta from the holding	41
discovery manage discovery requests	32
dismissal coordinate the dismissal documentation	69
distinguished explain why the case was distinguished	42
docket check the docket record	23
document retention follow document-retention requirements	60
effective date confirm the effective date	51
email thread review the complete email thread	33
enforcement assess enforcement options	69
engagement confirm the engagement scope	14
engagement letter review the engagement letter	14
entered order verify entry of the order	24
entire agreement clause review the entire agreement clause	51
ESI review collected ESI	32
evidence assess the supporting evidence	5
exculpatory information preserve exculpatory information	59
execution copy verify the execution copy	51
exhibit mark a deposition exhibit	33

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

exposure assess potential exposure	6
extension confirm an extension	24
fact distinguish facts from conclusions	5
factual record complete the factual record	6
fallback position confirm the approved fallback position	51
fee arrangement explain the approved fee arrangement	15
filing verify filing status	23
finding approve an investigation finding	59
firsthand knowledge distinguish firsthand knowledge	59
hearing confirm the hearing details	23
hierarchy map the court hierarchy	41
holding identify the holding	41
identity verification complete identity verification	15
impasse identify the source of an impasse	69
indemnity negotiate the indemnity provision	50
inference identify an evidential inference	5
informed consent refer informed-consent questions to counsel	15
informed instruction obtain an informed instruction	69
installment specify the installment amount	69
intake complete the intake record	14
interim measure explain the purpose of an interim measure	60
internal investigation scope an internal investigation	59
interview record verify the interview record	59
investigation mandate confirm the investigation mandate	60

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

issue frame the legal issue	5
jurisdiction identify the relevant jurisdiction	24
jurisdiction confirm the relevant jurisdiction	41
legal hold issue an authorized legal hold	32
legislative history assess relevant legislative history	41
liability cap verify the liability cap	51
limitation of liability preserve the limitation of liability	50
markup reconcile competing markups	50
material distinction address a material distinction	42
materiality assess materiality	6
matter number reference the matter number	15
mediation prepare for mediation	69
mediator clarify the mediator's role	69
metadata preserve relevant metadata	33
motion file a motion when authorized	23
mutual release negotiate a mutual release	68
need to know restrict access on a need-to-know basis	60
no admission review the no-admission clause	68
non-disparagement distinguish non-disparagement from confidentiality	68
non-engagement route a non-engagement communication for review	15
non-retaliation explain non-retaliation expectations	60
notice provision follow the notice provision	51
obligation identify the disputed obligation	6
offer clarify the offer terms	68

Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

operative clause revise the operative clause	50
order locate the signed order	23
order of precedence check the order of precedence	51
overruled check whether the decision was overruled	42
payment schedule confirm the payment schedule	68
persuasive authority rely on persuasive authority	41
pinpoint citation add a pinpoint citation	42
pleading review the pleading	23
preliminary label the analysis preliminary	6
preservation follow preservation instructions	32
privilege assess a privilege question	14
privilege log prepare a privilege-log entry	33
privilege review escalate a privilege-review question	32
procedural posture explain the procedural posture	24
procedural posture compare procedural posture	42
production set approve the production set	32
proof of service review proof of service	23
proposed order distinguish a proposed order from an issued order	24
prospective client handle a prospective-client inquiry	14
qualification preserve a material qualification	6
ratio decidendi identify the ratio decidendi	41
redaction approve a targeted redaction	33
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Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

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Find a term and its context

The page number leads to the definition and a typical word combination. Repeated terms have separate entries when they serve different lesson contexts.

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Original cases. Clear boundaries.

These are original fictional teaching conversations, not transcripts of real workers. Names, figures, organizations, and incidents are invented. Sources support terminology and communication aims, not the fictional results or an endorsement of this book.

[1] United States Courts. Federal Rules of Civil Procedure.

[Open the original source](#)

Primary procedural reference for the fictional US discovery and deposition settings. Applicable rules, local practice, and case orders require counsel review. Checked 10 October 2026.

[2] American Bar Association. Model Rule 1.4: Communications.

[Open the original source](#)

Background for clear client communication. ABA model rules are not automatically the governing rules in a particular jurisdiction. Checked 10 October 2026.

[3] American Bar Association. Model Rule 1.6: Confidentiality of Information, Comment.

[Open the original source](#)

Background for distinguishing professional confidentiality from evidentiary privilege. Actual obligations and exceptions require jurisdiction-specific review. Checked 10 October 2026.

[4] American Bar Association. Model Rule 1.5: Fees.

[Open the original source](#)

Background for communicating scope, fees, and expenses. Model rules are not automatically the law of every jurisdiction; the invoice example does not decide enforceability. Checked 10 October 2026.

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